BY ORDER OF THE COMMANDER
UNITED STATES AIR FORCES IN
EUROPE-AIR FORCES AFRICA

UNITED STATES AIR FORCES IN
EUROPE-AIR FORCES AFRICA
INSTRUCTION 51-402

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Law

FOREIGN CRIMINAL JURISDICTION

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This instruction implements Air Force Instruction (AFI) 51-402, *International Law*. It complies with Department of Defense Instruction (DoDI) 5525.01, *Foreign Criminal and Civil Jurisdiction*; United States European Command Instruction (ECI) 5801.01, *Legal Affairs*: Foreign Criminal Jurisdiction, Foreign Tax Relief Program, and Country Regulations; and United States Africa Command (USAFRICOM) Instruction (ACI) 5800.04B, *Exercise of Foreign Criminal Jurisdiction Over United States Personnel*. This publication describes responsibilities and prescribes guidance and procedures related to the USAFE-AFAFRICA Foreign Criminal Jurisdiction (FCJ) program. This is the only USAFE-AFAFRICA instruction regarding the FCJ program, and it is applicable to all United States Air Force (USAF) personnel including civilian employees of the Department of the Air Force (DAF), uniformed members of the Regular Air Force, the Air Force Reserve, and the Air National Guard; the United States Space Force (USSF); and those with a contractual obligation to abide by the terms of DAF publications who are located in the USAFE-AFAFRICA area of responsibility (AOR). It provides guidance to non-USAF personnel located in a foreign country where Commander, USAFE-AFAFRICA is assigned as the Designated Commanding Officer (DCO). USAF personnel located in foreign countries for which the Commander, USAFE, is not the DCO must also refer to policies issued by the commander responsible for FCJ in that country, see For DCOs appointed from other Services, see AER 550-50/CNE-C6F Instruction 5802.8K. Ensure all records generated as a result of processes prescribed in this publication adhere to AFI 33-322, *Records Management and Information Governance Program*, and are disposed in accordance with the Air Force Records Disposition Schedule, which is located in the Air Force Records Information Management System. Refer recommended changes and questions about this publication to the OPR using DAF Form 847, *Recommendation for*

Change of Product; route DAF Forms 847 from the field through the appropriate functional chain of command. Submit requests for waivers through the chain of command to the publication OPR for non-tiered compliance items. This publication may not be supplemented or further implemented or extended.

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1. Guidance.

1.1. General.

1.1.1. Consistent with DoDI 5525.01 and AFI 51-402, USAFE-AFAFRICA applies, when practicable, procedures similar to those called for in the U.S. Senate Resolution of Ratification, with reservations, to the North Atlantic Treaty Organization Status of Forces Agreement (NATO SOFA) (**Attachment 6**), in the USAFE-AFAFRICA AOR where Department of War (DoW) personnel are present in connection with official duties, even in those areas where the NATO SOFA is not applicable.

1.1.2. USAFE-AFAFRICA will, for DoW personnel present in areas outside the U.S. in connection with official duties where Commander, USAFE-AFAFRICA is the DCO:

1.1.2.1. Maximize the exercise of U.S. jurisdiction over such DoW personnel to the extent permissible under applicable status of forces agreements or other forms of jurisdiction arrangements.

1.1.2.2. Protect, to the maximum extent possible, the rights of such DoW personnel who may be subject to criminal trial by foreign courts and imprisonment in foreign prisons.

1.1.2.3. If arrested, secure, where possible, the release of such DoW personnel to the custody of U.S. authorities pending completion of all foreign judicial proceedings.

1.2. Payment of Counsel Fees and Related Expenses. USAFE-AFAFRICA will implement payment of counsel fees in certain criminal and civil cases for USAF and USSF members, USAF employees, and their command-sponsored and non-command-sponsored dependents outside the U.S. IAW AFI 51-402, and other applicable law and policy.

1.3. Information Sharing.

1.3.1. USAFE-AFAFRICA will give the general public and Congress information on status of forces matters. USAFE-AFAFRICA and its subordinate commands will coordinate and provide information to the public and Congress according to procedures established by USAFE-AFAFRICA, relevant combatant command, and DAF policy.

1.3.2. When USAFE-AFAFRICA or its subordinate commands dispose of a case, advance notification of the time and place of the trial or results of action taken will be provided to the authorities of the foreign nation through the relevant U.S. Country Representative (USCR) or DCO as required in relevant international agreements or on request.

2. Designated Commanding Officers.

2.1. General. IAW DoDI 5525.01, USEUCOM and USAFRICOM are responsible to appoint and oversee DCOs in the exercise of their duties.

2.2. Appointment. USEUCOM and USAFRICOM have appointed DCOs as noted in **Attachment 4** of this instruction. For guidance applicable in countries where the DCO is

appointed from other Component Commands, see AER 550-50/CNE-C6F Instruction 5802.8K.

2.3. Responsibilities. In accordance with DoDI 5525.01, DCOs are responsible to:

2.3.1. Formally invoke procedures under relevant international agreements to protect the rights of DoW personnel.

2.3.2. Ensure that any service members confined in foreign penal institutions are visited regularly IAW DoDI 5525.01.

2.3.3. Ensure in cooperation with the U.S. chief of mission (COM) and the senior defense official/defense attaché (SDO/DATT), and to the maximum extent possible, that non-military DoW personnel receive the same treatment, rights, and support as service members when in the custody of foreign authorities, or when confined (pre-trial and post-trial) in foreign penal institutions.

2.3.4. Report immediately and informally important new cases or significant developments in pending cases, such as the denial of procedural safeguards or substandard confinement conditions. Reports are made to the DoW General Counsel and to the applicable geographic Combatant Commander and HAF, along with their respective legal advisors.

2.3.5. Maintain and submit to the U.S. COM, in coordination with the SDO/DATT, a list of qualified people to serve as U.S. trial observers (TO) at trials before the courts of a foreign country.

2.3.6. Determine whether DoW personnel are likely to receive an unfair trial, and if there is a risk of an unfair trial, in consultation with the U.S. COM, request that the foreign country waive its jurisdiction.

2.3.7. Request, as described in ECI 5801.01 or ACI 5800.04B as appropriate, that the Department of State take formal action through diplomatic channels to obtain a waiver or relinquishment of foreign country criminal jurisdiction.

2.3.8. Receive and forward, intact, reports prepared by TOs, along with any appropriate comments, to the respective geographic Combatant Commander, the U.S. COM, and to the GC and JAG of the accused's Military Department.

2.3.9. Determine whether the trial was fair in accordance with DoDI 5525.01 and take further action as required.

2.3.10. When U.S. authorities have exercised jurisdiction for a concurrent jurisdiction offense, and if required by applicable international agreements, promptly notify appropriate foreign country authorities of the U.S. action and monitor for any subsequent attempt to exercise jurisdiction over DoW personnel for the same offense. Make every effort to prevent these attempts through local or diplomatic channels.

3. United States Country Representatives.

3.1. Appointment. A USCR may be appointed to assist in performing DCO functions within the country where the USCR is appointed to serve, and to serve as the single point of contact between the foreign country and the U.S. diplomatic mission in that country for matters related to the exercise of criminal jurisdiction over U.S. DoW personnel by that country.

3.1.1. USEUCOM AOR. Commander, USAFE has appointed USCRs as indicated in **Attachment 4** and in appointment memos which are maintained by the USAFE-AFAFRICA Office of the Staff Judge Advocate (USAFE-AFAFRICA/JA).

3.1.2. USAFRICOM AOR. In accordance with ACI 5800.04B, when there is a pending FCJ case, the DCO will appoint a USCR. USAFE-AFAFRICA subordinate commanders must be prepared to carry out USCR duties if appointed by a DCO to do so.

3.2. Responsibilities. Unless otherwise directed by the DCO, each USCR will perform the duties of the DCO as described in **paragraph 2.3** of this instruction. Specifically, the USCR will:

3.2.1. Act as the single point of contact (POC) for all U.S. military Services with the U.S. diplomatic mission and with the appropriate national legal or administrative authorities of the foreign country concerned in matters of criminal jurisdiction over DoW personnel.

3.2.2. Ensure that they are informed promptly of incidents that involve the exercise of FCJ or custody over DoW personnel, regardless of the branch of Service of the individual.

3.2.3. Coordinate with the national authorities of the foreign country through the U.S. diplomatic mission in that country.

3.2.4. Implement this publication, when possible, uniformly for all Services.

3.2.5. Provide copies of implementing directives to the geographic Component Command and other component commanders.

3.2.6. Ensure that information and education programs are established to orient DoW personnel on relevant foreign country laws and customs, and on the NATO SOFA, if applicable, and other international agreements as applicable.

3.2.7. Perform duties assigned to the DCO within the foreign country, except as specifically reserved for the DCO.

3.2.8. Prepare and transmit required reports.

3.2.9. Perform other duties as prescribed by this instruction or as otherwise assigned by the DCO.

4. Country Liaison Agents.

4.1. Appointment.

4.1.1. In countries where the USAF or the USSF have forces present but for which Commander, USAFE-AFAFRICA is not the DCO, Commander USAFE-AFAFRICA may appoint a Country Liaison Agent (CLA). **Attachment 4** and appointment memos maintained by USAFE-AFAFRICA/JA contain a list of CLAs appointed by Commander, USAFE-AFAFRICA.

4.1.2. Commanders who believe a CLA should be appointed for a country where one has not previously been appointed should coordinate a request through USAFE-AFAFRICA/JA.

4.2. Responsibilities. Unless otherwise directed by the DCO or USCR, CLAs will:

4.2.1. Act as the representative of Commander, USAFE-AFAFRICA on FCJ matters in the country where the CLA is appointed to serve.

4.2.2. Coordinate with the responsible DCO or USCR and assist the DCO or USCR with DCO functions involving USAF and USSF personnel.

4.2.3. Monitor incidents of FCJ involving USAF and USSF personnel to ensure units and personnel comply with applicable regulations and international agreements.

4.2.4. Ensure that Commander, USAFE-AFAFRICA is informed of incidents and their processing.

5. Responsibilities.

5.1. USAFE-AFAFRICA/JA will:

5.1.1. Advise Commander, USAFE-AFAFRICA on all FCJ program matters.

5.1.2. Act as primary POC for FCJ matters in foreign countries where Commander, USAFE-AFAFRICA is the DCO, but no USCR has been appointed, and assist Commander, USAFE-AFAFRICA in carrying out DCO duties in such countries.

5.1.3. Coordinate with USCRs, and CLAs, as appropriate, and with other component command and subordinate command and installation Staff Judge Advocates (SJA) on FCJ program matters.

5.1.4. Coordinate with AF/JAO, USEUCOM Office of the Staff Judge Advocate, and USAFRICOM Office of Legal Counsel as needed on FCJ program matters.

5.1.5. Maintain the USAFE-AFAFRICA FCJ database.

5.1.6. Receive copies of TO reports and forward copies to AF/JAO.

5.2. USAFE-AFAFRICA Subordinate Commanders will:

5.2.1. Support Commander, USAFE-AFAFRICA, other DCOs, USCRs and CLAs as appropriate in carrying out their duties and responsibilities as outlined in this instruction.

5.2.2. Ensure the appropriate USCR or DCO are promptly informed of all FCJ cases involving a member of their command as described in this instruction.

5.2.3. Ensure Airmen and Guardians who have or may become subject to FCJ or who have been or may be designated as witnesses are placed on international hold consistent with the guidance in AFI 51-402.

5.2.4. Make consistent efforts to cooperate with the appropriate USCR or DCO to maximize U.S. jurisdiction to the extent practicable and consistent with applicable international agreements.

5.2.5. Ensure prompt communication with the appropriate USCR or DCO where it appears probable that the release of jurisdiction over service members will not be obtained, or an accused may not obtain a fair trial.

5.2.6. Where applicable, carry out responsibilities with respect to payment of counsel fees and other authorized expenses as described in **paragraph 7** of this instruction.

5.2.7. Where applicable, carry out responsibilities as USCR as described in **paragraph 3** of this instruction.

5.2.8. Where applicable, carry out responsibilities as CLA as described in **paragraph 4** of this instruction.

5.2.9. In carrying out all responsibilities related to the FCJ program, consult with the servicing SJA to ensure compliance with law and policy related to the FCJ program.

5.2.10. When U.S. military authorities have the primary or exclusive right to exercise jurisdiction, or foreign authorities have waived or relinquished their primary or exclusive jurisdictional rights, dispose of cases promptly and appropriately under the UCMJ or appropriate administrative regulations.

5.3. USAFE-AFAFRICA Subordinate Command and Installation SJAs will:

5.3.1. Advise supported commanders on all FCJ program matters, including regarding:

5.3.1.1. Payment of counsel fees and other expenses.

5.3.1.2. Managing the international hold of Airmen and Guardians who have or may become subject to FCJ or who have been or may be designated as witnesses are placed on international hold consistent with the guidance in AFI 51-402.

5.3.1.3. Maintaining current records of reports of each visit to service members confined in foreign penal institutions, consistent with the requirements of DoDI 5525.01.

5.3.2. Coordinate with USAFE-AFAFRICA/JA and other component command SJAs as appropriate on FCJ program matters.

5.3.3. Create and update reports as required in AFI 51-402.

5.3.4. Ensure DoW personnel and their dependents facing criminal charges are informed of their rights and privileges under international and domestic law IAW AFI 51-402.

5.3.5. Ensure all judge advocates and civilian attorneys are familiar with international agreements, law, and policy relevant to the FCJ program.

5.3.6. As far as possible, build and maintain relationships with foreign nation authorities responsible for the investigation and prosecution of criminal allegations.

5.3.7. As appropriate, advise USCRs and CLAs on relevant U.S. and foreign nation law and policy to enable those authorities to carry out duties assigned to them.

5.3.8. Compile a list of qualified people to serve as TOs, and as needed, assist the DCO or USCR to submit the list of nominees, in coordination with the SDO/DATT, to the U.S. COM for approval.

5.3.9. Ensure only TOs appointed by the U.S. COM are assigned to perform TO duties and ensure TOs are properly trained and that they appropriately carry out all assigned responsibilities.

5.3.10. Ensure TO reports are forwarded to the USCR or DCO, with copies to USAFE-AFAFRICA/JA.

5.3.11. For subordinate command and installation SJAs located in the United Kingdom, follow the procedures established in **Attachment 18**, and coordinate all FCJ matters with USAFE-UK/JA.

5.4. All USAFE-AFAFRICA Personnel will:

5.4.1. When facing foreign criminal charges, attend all necessary court hearings.

5.4.2. If desired, request payment of counsel fees, court costs, bail, and other expenses be paid as permitted under AFI 51-402.

6. Procedures in Individual Cases.

6.1. Notification of Incident.

6.1.1. In accordance with procedures established by the appropriate DCO or USCR, unit commanders will immediately report incidents to the DCO or USCR appointed for the country in which the incident occurred and, where applicable, to the CLA for the service of the person subject to FCJ proceedings.

6.1.2. Unit commanders will also provide information copies of the report to their chain of command. For Air Force Reserve personnel, commanders will provide information to the reserve chain of command and to the Judge Advocate, Headquarters, Air Force Reserve Command, at Robins Air Force Base, Georgia.

6.2. Determination of Jurisdiction. With advice and assistance from the supporting SJA, and IAW all applicable international agreements, the DCO or USCR will gather sufficient information and make an initial determination regarding exercise of jurisdiction in a case.

6.2.1. Exclusive Jurisdiction of the Foreign Country. This generally occurs with offenses that are punishable under the laws of the foreign country but not under U.S. law. Commanders will ensure that they immediately inform the DCO or USCR when a foreign country intends to prosecute DoW personnel in a case in which the foreign country has exclusive jurisdiction.

6.2.2. Exclusive Jurisdiction of the U.S. This generally occurs with offenses that are punishable only under U.S. law, and with respect to treason against the U.S. and to sabotage, espionage or violation of any law relating to U.S. official secrets or secrets relating to U.S. national defense. When required under applicable international agreements, the DCO or USCR will immediately notify appropriate foreign country authorities that the U.S. has the exclusive right to exercise jurisdiction. Once advised by the DCO or USCR that the U.S. has the exclusive right to exercise jurisdiction, the appropriate U.S. authority will take appropriate disciplinary or administrative action without delay.

6.2.3. Concurrent Jurisdiction. Concurrent jurisdiction occurs when an offense is punishable under both the laws of the foreign country and under U.S. law. International agreements like the NATO SOFA, bilateral defense cooperation agreements, or diplomatic notes frequently describe how the U.S. and the foreign country have determined to proceed in the event of concurrent jurisdiction. U.S. authorities considering taking action with respect to an offense subject to concurrent jurisdiction must consult with the servicing SJA prior to taking any action.

6.2.3.1. U.S. Primary Right to Exercise Jurisdiction

6.2.3.1.1. When in accordance with applicable international agreements, the U.S. has the primary right to exercise jurisdiction, the USCR or DCO will immediately notify appropriate foreign country authorities if required to do so under applicable international agreements.

6.2.3.1.2. Once advised by the DCO or the USCR that the U.S. has the primary right to exercise jurisdiction, the appropriate U.S. authority will take appropriate disciplinary or administrative action without delay. If required under applicable international agreements or requested by foreign country authorities, the DCO or USCR will ensure that foreign country authorities are promptly notified of the U.S. action.

6.2.3.2. Foreign Country Primary Right to Exercise Jurisdiction

6.2.3.2.1. When in accordance with applicable international agreements, the foreign country has the primary right to exercise jurisdiction, the DCO or USCR will take immediate action to attempt to gain the foreign country's waiver of its primary right.

6.2.3.2.2. If the foreign country denies the request for waiver, the DCO or USCR will take continued action to ensure that the rights of DoW personnel are protected to the maximum extent possible.

6.2.3.2.3. If DoW personnel are in the foreign country's custody prior to trial, the DCO or USCR will take all appropriate action to secure their release into DoW control pending completion of all foreign judicial proceedings. For as long as DoW personnel remain in foreign custody, the DCO or USCR will take appropriate action to protect the person's rights while in custody.

6.3. Pretrial Action.

6.3.1. When DoW personnel are accused of or suspected of possible violation of foreign law, the commander will ensure that appropriate administrative action is taken (for example, international hold, suspension of exchange, commissary, ration, or driving privileges, as may be authorized). Administrative actions should have a direct relation to the alleged offense (for example, the driver's license of an individual suspected of vehicular negligent homicide may be suspended; the coffee or cigarette ration of an individual suspected of selling rationed coffee or cigarettes illegally may be suspended).

6.3.2. Even when a foreign authority has the primary right to exercise jurisdiction, commanders will ensure that investigation of the alleged offenses continues by U.S. authorities for use in possible future U.S. disciplinary or administrative actions.

6.3.3. Commanders will not bring an individual to trial, impose nonjudicial punishment, or make other final disposition of a case until foreign authorities indicate they will waive or relinquish jurisdiction, or action has otherwise been approved IAW DAF policy.

6.4. Serving Foreign Criminal Process. U.S. military authorities will take all lawful action to assist foreign courts and authorities to serve criminal process on individuals in foreign criminal matters. The DCO or USCR will request from the foreign authorities a copy of documents served on DoW personnel. In each case, U.S. military authorities will examine the documents,

determine whether foreign authorities are properly exercising jurisdiction in the case, and, if necessary, give an English translation of the documents to the DoW personnel concerned.

6.5. Release from Foreign Custody

6.5.1. U.S. Military Personnel.

6.5.1.1. The DCO or USCR will try to secure custody of accused military personnel until foreign judicial proceedings are complete. When a foreign country intends to exercise jurisdiction, commanders may give appropriate assurances that the accused will not be removed from the foreign country without giving due notice to the foreign country. If a foreign court seeks such assurances directly from the U.S. military authorities, or a party requests that the U.S. military authorities provide the assurances in a court hearing, the servicing SJA should coordinate with USAFE-AFAFRICA/JAI for further coordination with the Department of Justice Office of Foreign Litigation prior to providing the assurances.

6.5.1.2. When appropriate under U.S. law and policy, U.S. military authorities may order pretrial confinement of the accused in a U.S. facility.

6.5.2. Civilian Personnel and Dependents.

6.5.2.1. The DCO or USCR should try to secure the release of U.S. civilian employees and dependents from foreign pretrial confinement.

6.5.2.2. The DCO or the USCR should inform the foreign country authorities that the U.S. has no authority to restrain the liberty of civilian employees and dependents or guarantee their presence at the trial. The DCO or the USCR may assure foreign authorities that the U.S. will not transfer an accused from the foreign country at U.S. Government expense without prior notice to the foreign country authorities.

6.6. Administrative Action

6.6.1. Commanders may not take the following actions without the approval of the DCO or USCR:

6.6.1.1. Permit the transfer, reassignment, or removal of U.S. military personnel who have or may become subject to FCJ or who have been or may be designated as witnesses.

6.6.1.2. Provide transportation at Government expense outside the foreign country for civilians or dependents accused or suspected of being involved in incidents involving the exercise of criminal jurisdiction by a foreign country.

6.6.2. Unit commanders will inform the DCO or USCR when unusual circumstances or Service directives urgently require a person’s transfer (for example, expiration of term of service, grave personal hardship, medical reasons, or the interests of justice).

6.7. Trials in Absentia

6.7.1. Definition. A trial in absentia is a criminal proceeding before a foreign tribunal for which the accused is not present.

6.7.2. For USAF and USSF personnel, refer to AFI-51-402 for guidance on trials in absentia. Personnel of other services must refer to their service specific instructions regarding trials in absentia.

7. Counsel Fees and Related Assistance. Counsel fees, court costs, bail, and other expenses may be paid as permitted under service specific instructions and any applicable delegations of authority. Refer to AFI 51-402 for applicable guidance on payment of counsel fees, court costs, bail, and other expenses for USAF and USSF personnel and their dependents in criminal cases where they are involved as the accused or victim. Other services must refer to their service specific instructions regarding payment of court costs, bail, and other expenses.

8. Military Defense Counsel. IAW AFI 51-402, a military defense counsel may be available to advise a USAF or USSF member facing criminal charges in a foreign court, including where Commander, USAFE is not the DCO. Commanders and installation and subordinate command SJAs should assist members to contact a military defense counsel as needed.

9. Trial Observers.

9.1. Appointment of TOs.

9.1.1. As provided in **paragraph 2.3.5** of this instruction, the DCO must maintain and submit, in coordination with the SDO/DATT, a list of qualified people to serve as U.S. TOs for appointment by the U.S. COM.

9.1.2. USAFE-AFAFRICA installation and subordinate command SJAs will assist the DCO or USCR to identify qualified personnel to nominate for the U.S. COM's appointment.

9.1.3. If no attorney has been appointed by the U.S. COM, then the installation or subordinate command SJA must coordinate with the USCR or DCO to have an appropriate person appointed.

9.2. TO Qualifications.

9.2.1. Because the U.S. Senate Resolution of Ratification, with reservations, to the NATO SOFA and DODI 5525.01 are concerned with ensuring that DoW persons tried in a foreign court are afforded fair trail guarantees equivalent to those found in the U.S. Constitution, nominees to serve as TOs must be U.S. lawyers and must be selected for maturity of judgment. The requirement that nominees must be lawyers may be waived in cases of minor offenses. Incidents that result in serious personal injury or that would normally result in sentences of confinement, whether or not suspended, will not be considered minor offenses.

9.2.2. To the extent possible, the DCO or USCRs should nominate representatives of all military services whose members are stationed in that country to enable the U.S. COM to appoint an observer from the same military service as the accused whenever possible.

9.3. Installation and subordinate command SJAs are responsible for training trial observers to execute the responsibilities outlined in AFI 51-402, selecting a TO appointed by the U.S. COM to carry out TO responsibilities for a particular proceeding, and for ensuring that such responsibilities are appropriately carried out.

9.4. Trial Observer Function and Responsibilities

9.4.1. The function of the TO is to observe foreign criminal proceedings for the purpose of documenting whether the proceedings complied with procedural safeguards secured by pertinent international agreements and that the accused received a fair trial.

9.4.2. The TO will carry out all responsibilities described in AFI 51-402.

9.5. Unfair Trial. If a TO concludes that an accused has not received a fair trial, the DCO or USCR will evaluate the conclusion and act in accordance with DoDI 5525.01.

CHARLES J. HEBNER, Col, USAF
Staff Judge Advocate

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

AER 550-50/CNE-C6F Instruction 5802.8K, *Exercise of Foreign Criminal Jurisdiction Over United States Personnel*, 26 November 2007

AFI 33-322, *Records Management and Information Governance Program*, 23 March 2020

DAFI 51-402, *International Law*, 12 May 2026

DoDI 5525.01, *Foreign Criminal and Civil Jurisdiction*, 31 May 2019

USAFRICOM Instruction 5800.04B, *Exercise of Foreign Criminal Jurisdiction Over United States Personnel*, 26 May 2023

USEUCOM Instruction 5802.01, *Foreign Criminal Jurisdiction, Foreign Tax Relief Program, and Country Regulations*, 24 Aug 2022

Prescribed Forms

None

Adopted Forms

DAF Form 847, *Recommendation for Change of Product*

Abbreviations and Acronyms

ACI—USAFRICOM Command Instruction

AFI—Air Force Instruction

AOR—Area of Responsibility

CLA—Country Liaison Agent

COM—Chief of Mission

DCA—Defense Cooperation Agreement

DCO—Designated Commanding Officer

DoDI—Department of Defense Instruction

DOW—Department of War

ECI—USEUCOM Command Instruction

FCJ—Foreign Criminal Jurisdiction

GC—General Counsel

HAF—Headquarters, Air Force

JAG—Judge Advocate General

NATO—North Atlantic Treaty Organization

OPR—Office of Primary Responsibility

POC—Point of Contact

SBA—Sovereign Base Areas

SDO/DAAT—Senior Defense Official/Defense Attache

SJA—Staff Judge Advocate

SOFA—Status of Forces Agreement

TO—Trial Observer

UCMJ—Uniform Code of Military Justice

USAF—United States Air Force

USAFE-AFAFRICA—United States Air Forces in Europe-Air Forces Africa

USAFRICOM—United States Africa Command

USEUCOM—United States European Command

USCR—United States Country Representative

USSF—United States Space Force

Office Symbols

AF/JAO—The Judge Advocate General's Corps, Operations and International Law Directorate

USAFE—AFAFRICA/JA—USAFE-AFAFRICA Office of the Staff Judge Advocate

USAFE—AFAFRICA/JAI—USAFE-AFAFRICA Office of the Staff Judge Advocate International Law Section

USAFE-UK/JA—Legal Advisor to the USCR for the United Kingdom

Attachment 2

THE ROLE OF INTERNATIONAL AGREEMENTS

A2.1. General. International agreements play an important role in the USAFE-AFAFRICA FCJ program. International agreements frequently contain provisions regarding the status, privileges and immunities available to U.S. forces in a foreign country, as well as procedures for coordinating foreign criminal matters with the foreign country's authorities.

A2.2. International Agreements. The following is a non-exclusive list of international agreements relevant to the USAFE-AFAFRICA FCJ program.

A2.2.1. NATO SOFA. Agreement Between the Parties to the North Atlantic Treaty Regarding the Status of Their Forces of 19 June 1951 (4 UST 1792). (Articles I and VII are extracted in **Attachment 3**).

A2.2.1.1. The NATO SOFA is a treaty that defines the legal status of military forces, civilian employees, and their dependents of one NATO member state when assigned in the territory of another NATO member state. It provides a legal framework that sets out the rights, privileges, and responsibilities of these personnel under international law.

A2.2.1.2. The NATO SOFA applies in all 32 NATO member states: Albania, Belgium, Bulgaria, Canada, Croatia, the Czech Republic, Denmark, Estonia, Finland, France, Germany, Greece, Hungary, Iceland, Italy, Latvia, Lithuania, Luxembourg, Montenegro, the Netherlands, North Macedonia, Norway, Poland, Portugal, Romania, Slovakia, Slovenia, Spain, Sweden, Türkiye, the United Kingdom, and the United States.

A2.2.1.3. Article I of the NATO SOFA provides important definitions for determining the applicability of the status protections provided in the SOFA.

A2.2.1.4. Article VII of the NATO SOFA. Article VII specifically concerns matters of exercise of criminal jurisdiction, rights and privileges related to the arrest and exercise of control of individuals suspected or accused of crimes, cooperation in carrying out of investigations and the collection and production of evidence, matters related to death sentences, fair trial rights, and policing of premises occupied by U.S. forces in a receiving State.

A2.2.2. Partnership for Peace (PfP) SOFA. Agreement Among the States Parties to the North Atlantic Treaty and Other States Participating in the Partnership for Peace Regarding the Status of their Forces, Done at Brussels June 19, 1995; Entered into force January 13, 1996 (TIAS 12666).

A2.2.2.1. The PfP SOFA is a multilateral agreement between NATO member states and countries participating in the PfP program. It provides status protections to U.S. forces, civilian employees, and their dependents present in the territory of a PfP state. The PfP SOFA applies the provisions of the NATO SOFA in countries that have ratified it, although PfP members have frequently taken reservations to its provisions, including with respect to Article VII and FCJ. In addition to all NATO member states, the PfP SOFA applies in 22 PfP countries.

A2.2.2.2. For countries where Commander, USAFE-AFAFRICA is the DCO, the PfP SOFA applies in Azerbaijan.

A2.2.3. Bilateral Agreements Relevant to FCJ. The United States has entered into bilateral defense cooperation agreements, implementing arrangements, and other similar instruments with many NATO Allies and other partners that are relevant to the FCJ program. In the USEUCOM AOR, these agreements supplement the NATO SOFA. In places where the NATO SOFA does not apply, the agreements, sometimes in the form of an exchange of diplomatic notes, create status, privileges and immunities for U.S. forces in accordance with the terms of the agreement. These documents must be consulted in conjunction with the NATO SOFA, where applicable, and other relevant agreements and publications to determine the status, privileges and immunities of DoW personnel in a foreign country. The following are agreements applicable in countries where the Commander, USAFE-AFAFRICA is the DCO.

A2.2.3.1. Ascension Island. Agreement between the Government of the United States of America and the Government of the United Kingdom of Great Britian and Northern Ireland Concerning Extension of the Bahamas Long Range Proving Ground by the Establishment of Additional Sites in Ascension Island, as amended, entered in force June 25, 1956 (TIAS 3603).

A2.2.3.2. The Azores. Agreement on Cooperation and Defense Between the United States of America and Portugal, Technical Agreement, Annex H, signed at Lisbon June 1, 1995; Entered into force November 21, 1995 (TIAS 95-1121).

A2.2.3.3. Cyprus. Status of Forces Agreement Effected by Exchange of Notes at Nicosia October 21 and December 5, 2002, entered into force December 5, 2002 (TIAS 02-1205).

A2.2.3.4. Denmark. Agreement on Defense Cooperation between the Government of the United States of America and the Government of Denmark, signed at Washington on 21 December 2023; Entered into Force 1 July 2025.

A2.2.3.5. Finland. Agreement on Defense Cooperation, signed at Washington December 18, 2023, entered into force September 1, 2024 (TIAS 24-901).

A2.2.3.6. Hungary. Agreement on Defense Cooperation, signed at Washington April 4, 2019, entered into force August 21, 2019 (TIAS 19-821).

A2.2.3.7. Norway. Supplementary Defense Cooperation Agreement, signed at Washington and Oslo March 31 and April 16, 2021, entered into force June 17, 2022 (TIAS 22-617).

A2.2.3.8. Sweden. Agreement on Defense Cooperation, signed at Washington December 5, 2023, entered into Force August 15, 2024 (TIAS 24-815).

A2.2.3.9. Türkiye. Agreement Between the United States and the Republic of Turkey Relative to the Implementation of NATO SOFA of 23 June 1954 (5 UST 1465) (NATO SOFA IA); Agreement Amending the Minute of Understanding of 23 June 1954, entered into force on 21 July 1955 (6 UST 2917); Status of United States Forces in Turkey Relative to Duty Certificates, entered into force on 24 September 1968; and Cooperation on Defense and Economy (DECA), entered into force on 29 March 1980 (32 UST 3323).

Attachment 3

EXTRACT FROM NATO STATUS OF FORCES AGREEMENT (NATO SOFA) ARTICLES I AND VII

Table A3.1. Excerpt from Article I, NATO SOFA:

"1. In this Agreement the expression— (a) "force" means the personnel belonging to the land, sea, or air armed services of one Contracting Party when in the territory of another Contracting Party in the North Atlantic Treaty area in connection with their official duties, provided that the two Contracting Parties concerned may agree that certain individuals, units, or formations shall not be regarded as constituting or included in a "force" for the purpose of the present Agreement; (b) "civilian component" means the civilian personnel accompanying a force of a Contracting Party who are in the employ of an armed service of that Contracting Party, and who are not stateless persons, nor nationals of any State which is not a Party to the North Atlantic Treaty, nor nationals of, nor ordinarily resident in, the State in which the force is located; (c) "dependent" means the spouse of a member of a force or of a civilian component, or a child of such member depending on him or her for support.

Table A3.2. Excerpt from Article VII, NATO SOFA:

"1. Subject to the provisions of this Article, (a) the military authorities of the sending State shall have the right to exercise within the receiving State all criminal and disciplinary jurisdiction conferred on them by the law of the sending State over all persons subject to the military law of that State; (b) the authorities of the receiving State shall have jurisdiction over the members of a force or civilian component and their dependents with respect to offenses committed within the territory of the receiving State and punishable by the law of that State. 2. (a) The military authorities of the sending State shall have the right to exercise exclusive jurisdiction over persons subject to the military law of that State with respect to offenses, including offenses relating to its security, punishable by the law of the sending State, but not by the law of the receiving State. (b) The authorities of the receiving State shall have the right to exercise exclusive jurisdiction over members of a force or civilian component and their dependents with respect to offenses, including offenses relating to the security of that State, punishable by its law but not by the law of the sending State. (c) For the purposes of this paragraph and of paragraph 3 of this Article a security offense against a State shall include (i) treason against the State;

(ii) sabotage, espionage or violation of any law relating to official secrets of that State, or secrets relating to the national defense of that State.

3. In cases where the right to exercise jurisdiction is concurrent the following rules shall apply:

(a) The military authorities of the sending State shall have the primary right to exercise jurisdiction over a member of a force or of a civilian component in relation to

(i) offenses solely against the property or security of that State, or offenses solely against the person or property of another member of the force or civilian component of that State or of a dependent;

(ii) offenses arising out of any act or omission done in the performance of official duty.

(b) In the case of any other offense the authorities of the receiving State shall have the primary right to exercise jurisdiction.

(c) If the State having the primary right decides not to exercise jurisdiction, it shall notify the authorities of the other State as soon as practicable. The authorities of the State having the primary right shall give sympathetic consideration to a request from the authorities of the other State for a waiver of its right in cases where that other State considers such waiver to be of particular importance.

4. The foregoing provisions of this Article shall not imply any right for the military authorities of the sending State to exercise jurisdiction over persons who are nationals of or ordinarily resident in the receiving State, unless they are members of the force of the sending State.

5.

(a) The authorities of the receiving and sending States shall assist each other in the arrest of members of a force or civilian component or their dependents in the territory of the receiving State and in handing them over to the authority which is to exercise jurisdiction in accordance with the above provisions.

(b) The authorities of the receiving State shall notify promptly the military authorities of the sending State of the arrest of any member of a force or civilian component or a dependent.

(c) The custody of an accused member of a force or civilian component over whom the receiving State is to exercise jurisdiction shall, if he is in the hands of the sending State, remain with that State until he is charged by the receiving State.

6.

(a) The authorities of the receiving and sending States shall assist each other in the carrying out of all necessary investigations into offenses, and in the collection and production of evidence, including the seizure and, in proper cases, the handing over of objects connected with an offense. The handing over of such objects may, however, be made subject to their return within the time specified by the authority delivering them.

(b) The authorities of the Contracting Parties shall notify one another of the disposition of all cases in which there are concurrent rights to exercise jurisdiction.

7.

(a) A death sentence shall not be carried out in the receiving State by the authorities of the sending State if the legislation of the receiving State does not provide for such punishment in a similar case.

(b) The authorities of the receiving State shall give sympathetic consideration to a request from the authorities of the sending State for assistance in carrying out a sentence of imprisonment pronounced by the authorities of the sending State under the provision of this Article within the territory of the receiving State.

8. Where an accused has been tried in accordance with the provisions of this Article by the authorities of one Contracting Party and has been acquitted, or has been convicted and is serving, or has served, his sentence or has been pardoned, he may not be tried again for the same offense within the same territory by the authorities of another Contracting Party. However, nothing in this paragraph shall prevent the military authorities of the sending State from trying a member of its force for any violation of rules of discipline arising from an act or omission which constituted an offense for which he was tried by the authorities of another Contracting Party.

9. Whenever a member of a force or civilian component or a dependent is prosecuted under the jurisdiction of a receiving State he shall be entitled—

(a) to a prompt and speedy trial;

(b) to be informed, in advance of trial, of the specific charge or charges made against him;

(c) to be confronted with the witnesses against him;

(d) to have compulsory process for obtaining witnesses in his favor, if they are within the jurisdiction of the receiving State;

(e) to have legal representation of his own for his defense or to have free or assisted legal representation under the conditions prevailing for the time being in the receiving State;

(f) if he considers it necessary, to have the services of a competent interpreter; and

(g) to communicate with a representative of the Government of the sending State and, when the rules of the court permit, to have such a representative present at this trial.

Attachment 4

LIST OF DCOS, USCRS, AND CLAS

A4.1. DCOs.

A4.1.1. Commander USEUCOM has appointed DCOs as follows:

A4.1.1.1. Commander, U.S. Army Europe: Albania, Armenia, Austria, Belarus, Belgium, Bosnia and Herzegovina, Bulgaria, Croatia, Czech Republic, Estonia, Germany, Georgia, Kosovo, Latvia, Lithuania, North Macedonia, Moldova, Montenegro, the Netherlands, Poland, Romania, Russia, Serbia, Slovakia, Slovenia, Switzerland, and Ukraine.

A4.1.1.2. Commander, U.S. Naval Forces Europe: Greece, Iceland, Ireland, Italy, Malta, Portugal (not including the Azores), and Spain.

A4.1.1.3. Commander, U.S. Air Force in Europe: Azerbaijan, the Azores, Cyprus, Denmark, Finland, France, Hungary, Luxembourg, Norway, Sweden, Turkey, and the United Kingdom.

A4.1.2. Commander, USAFRICOM has appointed DCOs as follows:

A4.1.2.1. Commander, Combined Joint Task Force-Horn of Africa: Burundi, Comoros, Djibouti, Eritrea, Ethiopia, Kenya, Mauritius, Rwanda, Seychelles, Somalia, Sudan, South Sudan, Tanzania, and Uganda.

A4.1.2.2. Senior Defense Official/Defense Attache (SDO/DATT): Algeria, Angola, Benin, Botswana, Burkina Faso, Cameroon, Cape Verde, Central African Republic, Chad, Cote d'Ivoire, Democratic Republic of Congo, Equatorial Guinea, Gabon, Ghana, Guinea, Guinea-Bissau, Lesotho, Liberia, Libya, Madagascar, Malawi, Mali, Mauritania, Morocco, Mozambique, Namibia, Niger, Nigeria, Republic of the Congo, Sao Tome and Principe, Senegal, Sierra Leone, South Africa, Swaziland, The Gambia, Togo, Tunisia, Zambia, and Zimbabwe.

A4.2. Commander USAFE has appointed USCRs as follows:

A4.2.1. The Azores: Commander, 65th Air Base Group, Lajes Field, Portugal

A4.2.2. Norway: Senior U.S. Military Officer, NATO Joint Warfare Center, Stavanger, Norway

A4.2.3. France and Luxembourg: Commander, 52d Fighter Wing, Spangdahlem Air Base, Germany

A4.2.4. Türkiye: Commander, 39th Air Base Wing, Incirlik Air Base, Türkiye

A4.2.5. United Kingdom, Sovereign Base Areas, and Ascension Island: Commander, 48th Fighter Wing, RAF Lakenheath, United Kingdom.

A4.3. Commander, USAFE has appointed CLAs as follows:

A4.3.1. Bulgaria, Italy and Romania: Commander, 31st Fighter Wing, Aviano Air Base, Italy

A4.3.2. Belgium, The Netherlands, and Poland: Commander, 52d Fighter Wing, Spangdahlem, Germany

A4.3.3. Portugal and Spain: Commander 65th Air Base Group, Lajes Field, Portugal.

Attachment 5

RELEVANT FCJ POLICIES AND GUIDANCE

A5.1. Relevant FCJ policies and guidance.

A5.1.1. 32 CFR §151, *Foreign Criminal and Civil Jurisdiction*

A5.1.2. 32 CFR §845, *Counsel Fees and Other Expenses in Foreign Tribunals*

A5.1.3. AER 550-56/USNAVEUR Instruction 5820.13F/USAFE Instruction 51-705, *Exercise of Jurisdiction by German Courts and Authorities Over U.S. Personnel,* 14 Nov 2014

A5.1.4. AR 27-50/SECNAVINST 5820.4G, *Status of Forces Policies, Procedures, and Information* 15 Dec 1989

A5.1.5. DAFI 36-2110, *Total Force Assignments*, 9 August 2024

A5.1.6. DAFI 36-2502, *Enlisted Airman Promotion and Demotion Programs*, 16 April 2021

A5.1.7. DAFI 36-2606, *Reenlistment and Extension of Enlistment*, 22 May 2024

A5.1.8. DAFI 36-2907, *Adverse Administrative Actions*, 14 January 2026

A5.1.9. DAFI 36-3211, *Military Separations*, 24 June 2022

A5.1.10. DAFI 51-201, *Administration of Military Justice*, 9 January 2026

A5.1.11. DoDI 5525.11, *Criminal Jurisdiction Over Civilians Employed by or Accompanying the Armed Forces Outside the United States, Certain Service Members, and Former Service Members,* 3 Mar 2005

A5.1.12. DoDM 5200.01V1, *DoD Information Security Program: Overview, Classification, and Declassification*, 24 Feb 2012

Attachment 6

U.S. SENATE RESOLUTION OF RATIFICATION

Figure A6.1. U.S. Senate Resolution of Ratification.

U.S. Senate Resolution of Ratification, with reservations, to the North Atlantic Treaty Organization Status of Forces Agreement (NATO SOFA)

The Department of State reports that the instrument of ratification of the Agreement by the United States of America includes the following statement:

"It is the understanding of the Senate, which understanding inheres in its advice and consent to the ratification of the Agreement, that nothing in the Agreement diminishes, abridges, or alters the right of the United States of America to safeguard its own security by excluding or removing persons whose presence in the United States is deemed prejudicial to its safety or security, and that no person whose presence in the United States is deemed prejudicial to its safety or security shall be permitted to enter or remain in the United States.

"In giving its advice and consent to ratification, it is the sense of the Senate that:

1. The criminal jurisdiction provisions of Article VII do not constitute a precedent for future agreements;

2. Where a person subject to the military jurisdiction of the United States is to be tried by the authorities of a receiving state, under the treaty the Commanding Officer of the Armed Forces of the United States in such state shall examine the laws of such state with particular reference to the procedural safeguards contained in the Constitution of the United States;

3. If, in the opinion of such commanding officer, under all the circumstances of the case, there is danger that the accused will not be protected because of the absence or denial of constitutional rights he would enjoy in the United States, the commanding officer shall request the authorities of the receiving state to waive jurisdiction in accordance with the provisions of paragraph 3 (c) of Article VII (which requires the receiving state to give 'sympathetic consideration' to such request) and if such authorities refuse to waive jurisdiction, the commanding officer shall request the Department of State to press such request through diplomatic channels and notification shall be given by the Executive Branch to the Armed Services Committees of the Senate and House of Representatives;

4. A representative of the United States to be appointed by the Chief of Diplomatic Mission with the advice of the senior United States military representative in the receiving state will attend the trial of any such person by the authorities of a receiving state under the agreement, and any failure to comply with the provisions of paragraph 9 of Article VII of the agreement shall be reported to the commanding officer of the armed forces of the United States in such state who shall then request the Department of State to take appropriate action to protect the rights of the accused, and notification shall be given by the Executive Branch to the Armed Services Committees of the Senate and House of Representatives."

Attachment 7

FCJ PROCEDURES – THE AZORES

A7.1. Purpose. Current as May 2026. This instruction provides information and procedures regarding the operation of the FCJ program in the Azores.

A7.2. Authority. These procedures are issued by the Commander, USAFE as the DCO for the Azores.

A7.3. Applicability and Scope. This instruction applies to all U.S. forces, and their dependents as defined in **paragraph A7.4** of this attachment.

A7.4. Definitions.

A7.4.1. Force. Has the meaning set forth in Article 1, paragraph 1(a) of the NATO SOFA.

A7.4.2. Civilian Component. IAW Article I, paragraph 1., of Annex H of the Technical Agreement (TA) of the Agreement on Cooperation and Defense between the United States of America and Portugal, has the meaning set forth in Article I, paragraph 1(b) of the NATO SOFA and includes the employees of non-profit organizations who, properly identified by the U.S. authorities, accompany U.S. Forces for the sole purpose of contributing to the welfare, morale, and education of members of the force or of the civilian component, as well as dependents, and who are not Portuguese citizens or ordinarily resident in Portugal.

A7.4.3. Dependent. IAW Article I, paragraph 1., of Annex H of the TA, has the meaning set forth in Article I, Paragraph 1(c), of the NATO SOFA and includes persons from the family of a member of the force or the civilian component, as well as such member's spouse, who are present in the Azores and are financially, legally or for reasons of health dependent upon such member.

A7.4.4. Legal Advisor. Refers to the SJA, 65th Air Base Group, Lajes Field, Unit 7790 APO, AE 09720 DSN: 314-535-3546 Comm: 011-351-295-573 DSN 314-535-3546

A7.5. Relevant International Agreements. The Azores is an autonomous region of Portugal. The NATO SOFA and the TA provide status protections for members of the force and the civilian component and their dependents. IAW Annex H, paragraph VIII of the TA, Portugal will, at the request of the U.S. military authorities, waive its primary right to exercise criminal jurisdiction over the members of the force, except in cases of particular importance to Portugal. Accordingly, members of the force, the civilian component, and their dependents are not immune from criminal jurisdiction and may, in certain circumstances, become the subjects of criminal prosecution before Portuguese courts.

A7.6. Guidance.

A7.6.1. IAW ECI 5802.01, Commander, USAFE, is the DCO for the Azores. Commander, USAFE has appointed the Commander, 65th Air Base Group, as USCR for the Azores. The Legal Advisor is the point of contact for all FCJ matters that occur in the territory of the Azores.

A7.6.2. Contact with the local police or judicial authorities to obtain release from custody or waiver of jurisdiction by anyone other than the USCR or the Legal Advisor is prohibited. Commanders and CLAs are to communicate directly with the Legal Advisor about matters involving the exercise of criminal jurisdiction in the Azores.

A7.7. Responsibilities.

A7.7.1. Commanders will:

A7.7.1.1. Establish procedures to ensure that members of the force and the civilian component are advised of their rights and obligations under the NATO SOFA, including respecting the laws of Portugal refraining from engaging in political activities in Portugal, their amenability to the criminal jurisdiction of Portugal, and their rights and duties relating to customs privileges in Portugal. This advice will be given to personnel as soon as practical after their arrival in the Azores. Commanders should contact the Legal Advisor for assistance with a briefing program that meets this requirement.

A7.7.1.2. Promptly inform the Legal Advisor of any act or omission by members of the force, the civilian component, or their dependents that involves Portuguese interest and that could result in any of the following:

A7.7.1.2.1. criminal proceedings by Portuguese courts.

A7.7.1.2.2. claims against the U.S. Government.

A7.7.1.2.3. creating or arousing substantial public interest.

A7.7.1.2.4. adverse public relations that would be detrimental to the U.S.

A7.7.1.3. Without prior approval of the USCR, not permit the transfer or reassignment of a member of the force or provide transportation at Government expense outside of the Azores for members of the civilian component or dependents who have or may become subject to FCJ or who have been or may be designated as witnesses in the exercise of FCJ by Portugal. Commanders will inform the USCR through the Legal Advisor when unusual circumstances or service directives urgently require the individual's transfer.

A7.7.1.4. Ensure that an international hold is placed on any member of the force who is accused of or suspected of being involved in incidents likely to result in the exercise of FCJ by Portugal. This is necessary to prevent personnel actions that would authorize the departure of such persons from the Azores without the prior approval of the USCR.

A7.7.1.5. Impound, where appropriate, all documents relating to an individual facing the exercise of FCJ that might assist his or her unauthorized departure and establish other appropriate controls.

A7.7.1.6. Advise such personnel by written memorandum with written acknowledgment required, that an international hold has been instituted and that they are not to depart the Azores until such departure is authorized by the USCR.

A7.7.1.7. Notify the appropriate traffic management office (TMO) that such personnel must not be afforded Government transportation of any type from the Azores without the prior approval of the USCR, and to rescind any TMO actions that have been completed permitting such transportation.

A7.7.1.8. Not approve permanent change of station, temporary duty, pass, or leave of such personnel without the approval of the USCR.

A7.7.2. Legal Advisor will:

A7.7.2.1. Establish procedures to ensure that he or she is immediately notified by Portuguese police or judicial authorities of the arrest, detention, or apprehension of members of the force, the civilian component or their dependents by Portuguese authorities.

A7.7.2.2. Immediately notify the USCR; the appropriate CLA; the commander of the individual concerned; and the Senior Defense Official/Defense Attache (SDO/DATT) of the involvement of any member of the force, the civilian component or their dependents in incidents resulting in arrest, detention, or apprehension by Portuguese authorities.

A7.7.2.3. Assist the USCR to carry out the duties described in paragraphs **2 and 3** of this instruction.

A7.7.2.4. Liaise with CLAs and with USAFE/JAI as appropriate to ensure appropriate handling of all FCJ matters in the Azores.

Attachment 8

FCJ PROCEDURES – AZERBAIJAN

A8.1. Purpose. Current as of May 2026. This attachment provides information and procedures regarding the operation of the FCJ program in Azerbaijan.

A8.2. Authority. These procedures are issued by the Commander, USAFE as the DCO for Azerbaijan.

A8.3. Applicability and Scope. This attachment applies to all members of the force, the civilian component, and their dependents located in the territory of Azerbaijan as defined in **paragraph A8.4** of this attachment.

A8.4. Definitions.

A8.4.1. Force. Has the meaning set forth in Article I, paragraph 1(a) of the NATO SOFA.

A8.4.2. Civilian Component. Has the meaning set forth in Article I, paragraph 1(b) of the NATO SOFA.

A8.4.3. Dependent. Has the meaning set forth in Article I, Paragraph 1(c), of the NATO SOFA.

A8.4.4. Legal Advisor. Refers to the SJA, USAFE-AFAFRICA/JA, OPC 02 Box 79, APO, AE 09094; DSN 314-480-6826, Comm: +49-6371-476826.

A8.5. Relevant International Agreements. The NATO PfP SOFA provides status protections for members of the force, the civilian component, and their dependents located in the territory of Azerbaijan. IAW Article VII of the NATO SOFA, applicable in Azerbaijan through the PfP SOFA, members of the force, the civilian component, and their dependents are not immune from Azerbaijani criminal jurisdiction and may, in certain circumstances, become the subjects of criminal prosecution before Azerbaijani courts.

A8.6. Guidance.

A8.6.1. IAW U.S. ECI 5802.01, Commander, USAFE, is the DCO for Azerbaijan. Commander, USAFE has not appointed an USCR. The Legal Advisor is the point of contact for all FCJ matters that occur in the territory of Azerbaijan.

A8.6.2. Contact with the local police or judicial authorities to obtain release from custody or waiver of jurisdiction by anyone other than the DCO or the Legal Advisor is prohibited. Commanders and CLAs are to communicate directly with the Legal Advisor about matters involving the exercise of criminal jurisdiction in Azerbaijan.

A8.7. Responsibilities.

A8.7.1. Commanders will:

A8.7.1.1. Establish procedures to ensure that members of the force and civilian component are advised of their rights and obligations under the NATO SOFA, including respecting the laws of Azerbaijan, refraining from engaging in political activities in Azerbaijan, their amenability to the criminal jurisdiction of Azerbaijan, and their rights and duties relating to customs privileges in Azerbaijan. This advice will be given to personnel as soon as

practical after their arrival in Azerbaijan. Commanders should contact the Legal Advisor for assistance with a briefing program that meets this requirement.

A8.7.1.2. Promptly inform the Legal Advisor of any act or omission by members of the force, the civilian component or their dependents that involves Azerbaijani interest and that could result in any of the following:

A8.7.1.2.1. criminal proceedings by Azerbaijani courts.

A8.7.1.2.2. claims against the U.S. Government.

A8.7.1.2.3. creating or arousing substantial public interest.

A8.7.1.2.4. adverse public relations that would be detrimental to the U.S.

A8.7.1.3. Without prior approval of the DCO, not permit the transfer or reassignment of a member of the force or provide transportation at Government expense outside of Azerbaijan for members of the civilian component or dependents who have or may become subject to FCJ or who have been or may be designated as witnesses in the exercise of FCJ by Azerbaijan. Commanders will inform the DCO through the Legal Advisor when unusual circumstances or service directives urgently require the individual's transfer.

A8.7.1.4. Ensure that an international hold is placed on any member of the force who is who have or may become subject to FCJ or who have been or may be designated as witnesses in the exercise of FCJ by Azerbaijan. This is necessary to prevent personnel actions that would authorize the departure of such persons from Azerbaijan without the prior approval of the DCO.

A8.7.1.5. Impound, where appropriate, all documents relating to an individual facing the exercise of FCJ that might assist his or her unauthorized departure and establish other appropriate controls.

A8.7.1.6. Advise such personnel by written memorandum with written acknowledgment required, that an international hold has been instituted and that they are not to depart Azerbaijan until such departure is authorized by the DCO.

A8.7.1.7. Notify the appropriate traffic management office (TMO) that such personnel must not be afforded Government transportation of any type from Azerbaijan without the prior approval of the USCR, and to rescind any TMO actions that have been completed permitting such transportation.

A8.7.1.8. Not approve permanent change of station, temporary duty, pass, or leave of such personnel without the approval of the DCO.

A8.7.2. Legal Advisor will:

A8.7.2.1. Establish procedures to ensure that he or she is immediately notified by Azerbaijani police or judicial authorities of the arrest, detention, or apprehension of members of the force, the civilian component or their dependents by Azerbaijani authorities.

A8.7.2.2. Immediately notify the DCO; the appropriate CLA; the commander of the individual concerned; and the Senior Defense Official/Defense Attache (SDO/DATT) of

the involvement of any members of the force, the civilian component, or their dependents in incidents resulting in arrest, detention, or apprehension by Azerbaijani authorities.

A8.7.2.3. Assist the DCO to carry out the duties described in paragraphs **2 and 3** of this instruction.

A8.7.2.4. Liaise with CLAs as appropriate to ensure appropriate handling of all FCJ matters in Azerbaijan.

Attachment 9

FCJ PROCEDURES – CYPRUS

A9.1. Purpose. Current as of May 2026. This attachment provides information and procedures regarding the operation of the FCJ program in Cyprus.

A9.2. Authority. These procedures are issued by the Commander, USAFE as the DCO for Cyprus.

A9.3. Applicability and Scope.

A9.3.1. This attachment applies to DoW personnel as defined in **paragraph A9.4** of this attachment.

A9.3.2. For FCJ information on RAF Akrotiri or any UK Sovereign Base Area (SBA) on Cyprus, see **Attachment 17**.

A9.4. Definitions.

A9.4.1. DoW Personnel. For the purposes of this attachment, means U.S. military and civilian personnel of the DoW present in the territory of Cyprus for in connection with cooperative efforts in response to terrorism, humanitarian assistance, U.S. Navy port visits, U.S. aircraft landings, and other agreed activities.

A9.4.2. Legal Advisor. Refers to the SJA, USAFE-AFAFRICA/JA, OPC 02 Box 79, APO, AE 09094; DSN 314-480-6826, Comm: +49-6371-476826.

A9.5. Relevant International Agreements. The Status of Forces Agreement Effected by Exchange of Notes at Nicosia October 21 and December 5, 2002, entered into force December 5, 2002 (TIAS 02-1205) (EON) provides status protections for DoW personnel in the territory of Cyprus. IAW the EON, DoW personnel are accorded a status equivalent to that accorded the administrative and technical staff of the Embassy of the United States under the Vienna Convention on Diplomatic Relations of April 18, 1961. Cyprus authorizes the U.S Government to exercise criminal jurisdiction over DoW personnel. Accordingly, DoW personnel are immune from the exercise of criminal jurisdiction by the Cypriot authorities unless expressly waived by the U.S.

A9.6. Guidance.

A9.6.1. IAW U.S. ECI 5802.01, Commander, USAFE, is the DCO for Cyprus. Commander, USAFE has not appointed an USCR. The Legal Advisor is the point of contact for all FCJ matters that occur in the territory of Cyprus.

A9.6.2. Contact with the local police or judicial authorities to obtain release from custody or waiver of jurisdiction by anyone other than the DCO or the Legal Advisor is prohibited. Commanders and CLAs are to communicate directly with the Legal Advisor about matters involving the exercise of criminal jurisdiction in Cyprus.

A9.7. Responsibilities.

A9.7.1. Commanders will:

A9.7.1.1. Establish procedures to ensure that DoW personnel are advised of their rights and obligations under the EON. This advice will be given to personnel as soon as practical

after their arrival in Cyprus. Commanders should contact the Legal Advisor for assistance with a briefing program that meets this requirement.

A9.7.1.2. Promptly inform the Legal Advisor of any act or omission by DoW personnel that involves Cypriot interest and that could result in any of the following:

A9.7.1.2.1. criminal proceedings by Cypriot courts.

A9.7.1.2.2. claims against the U.S. Government.

A9.7.1.2.3. creating or arousing substantial public interest.

A9.7.1.2.4. adverse public relations that would be detrimental to the U.S.

A9.7.2. Legal Advisor will:

A9.7.2.1. Establish procedures to ensure that he or she is immediately notified of the arrest, detention, or apprehension of DoW personnel by Cypriot authorities.

A9.7.2.2. Immediately notify the DCO; the appropriate CLA; the commander of the individual concerned; and the Senior Defense Official/Defense Attache (SDO/DATT) of the involvement of any DoW personnel in incidents resulting in arrest, detention, or apprehension by Cypriot authorities.

A9.7.2.3. Assist the DCO to carry out the duties described in paragraphs **2 and 3** of this instruction.

A9.7.2.4. Liaise with CLAs as appropriate to ensure appropriate handling of all FCJ matters in Cyprus.

Attachment 10

FCJ PROCEDURES – DENMARK

A10.1. Purpose. Current as of May 2026. This instruction provides information and procedures regarding the operation of the FCJ program in Denmark.

A10.2. Authority. These procedures are issued by the Commander, USAFE as the DCO for Denmark.

A10.3. Applicability and Scope. This instruction applies to all U.S. forces, and their dependents as defined in **paragraph A10.4** of this attachment.

A10.4. Definitions.

A10.4.1. U.S. Forces. As defined in Article 2, paragraph 1 of the 2023 Agreement on Defense Cooperation between the Government of the United States of America and the Government of Denmark (DCA), the entity comprising the force and the civilian component, and all property, official U.S. information, equipment, and materiel (including vehicles, vessels, and aircraft operated by or for the United States) of the U.S. Armed Forces present in the territory of Denmark.

A10.4.2. Force. As defined in Article 2, paragraph 2 of the DCA, has the meaning set forth in Article I, paragraph 1(a) of the NATO SOFA.

A10.4.3. Civilian Component. As defined in Article 2, paragraph 3 of the DCA, has the meaning set forth in Article I, paragraph 1(b) of the NATO SOFA, and also includes:

A10.4.3.1. employees of non-Danish, non-commercial organizations who are U.S. nationals of the or ordinarily resident in the territory of the United States and who are not ordinarily resident in the territory of Denmark, and who, solely for the purpose of contributing to the welfare, morale, or education of U.S. forces, are accompanying those forces in the territory of Denmark; and,

A10.4.3.2. dependents employed by U.S. forces, including for the purposes of the military service activities contemplated in Articles 21 and 22 of the DCA, and by the noncommercial organizations referred to in this paragraph.

A10.4.4. Dependent. As defined in Article 2, paragraph 6 of the DCA, has the meaning set forth in Article I, Paragraph 1(c), of the NATO SOFA, and also includes a family member of a member of the force or the civilian component who:

A10.4.4.1. is financially, legally, or for reasons of health dependent upon and supported by such a member;

A10.4.4.2. shares the quarters occupied by such a member; and,

A10.4.4.3. is present in the territory of Denmark with the consent of the authorities of the force.

A10.4.5. Legal Advisor. Refers to the SJA, 426th Air Base Squadron (ABS/JA), Unit 6615, APO AE 09706; DSN: 314-224-0532; COMM: +47 5195 0532.

A10.5. Relevant International Agreements. The NATO SOFA and the DCA provide status protections for the U.S. forces and their dependents. In DCA Article 12, Denmark waived its

primary right to exercise criminal jurisdiction in concurrent jurisdiction cases. Denmark may withdraw this waiver in specific cases of particular importance to Denmark by providing a statement in writing to the competent U.S. forces authorities not later than thirty days after receipt of notification of the offense by the US. forces authorities. Accordingly, members of the U.S. forces and their dependents are not immune from Danish criminal jurisdiction and may, in certain circumstances, become the subjects of criminal prosecution before Danish courts.

A10.6. Guidance.

A10.6.1. IAW ECI 5802.01, Commander, USAFE, is the DCO for Denmark. Commander, USAFE has not appointed a USCR. The Legal Advisor is the point of contact for all FCJ matters that occur in the territory of Denmark.

A10.6.2. Contact with the local police or judicial authorities to obtain release from custody or waiver of jurisdiction by anyone other than the DCO or the Legal Advisor is prohibited. Commanders and CLAs are to communicate directly with the Legal Advisor about matters involving the exercise of criminal jurisdiction in Denmark.

A10.7. Responsibilities.

A10.7.1. Commanders will:

A10.7.1.1. Establish procedures to ensure that members of the U.S. forces are advised of their rights and obligations under the NATO SOFA, including respecting the laws of Denmark, refraining from engaging in political activities in Denmark, their amenability to the criminal jurisdiction of Denmark, and their rights and duties relating to customs privileges in Denmark. This advice will be given to personnel as soon as practical after their arrival in Denmark. Commanders should contact the Legal Advisor for assistance with a briefing program that meets this requirement.

A10.7.1.2. Promptly inform the Legal Advisor of any act or omission by members of the U.S. forces or their dependents that involves Danish interest and that could result in any of the following:

A10.7.1.2.1. criminal proceedings by Danish courts.

A10.7.1.2.2. claims against the U.S. Government.

A10.7.1.2.3. creating or arousing substantial public interest.

A10.7.1.2.4. adverse public relations that would be detrimental to the U.S.

A10.7.1.3. Without prior approval of the DCO, not permit the transfer or reassignment of a member of the force or provide transportation at Government expense outside of Denmark for members of the civilian component or dependents who have or may become subject to FCJ or who have been or may be designated as witnesses in the exercise of FCJ by Denmark. Commanders will inform the DCO through the Legal Advisor when unusual circumstances or service directives urgently require the individual’s transfer.

A10.7.1.4. Ensure that an international hold is placed on any member of the force who is who have or may become subject to FCJ or who have been or may be designated as witnesses in the exercise of FCJ by Denmark. This is necessary to prevent personnel actions that would authorize the departure of such persons from Denmark without the prior approval of the DCO.

A10.7.1.5. Impound, where appropriate, all documents relating to an individual facing the exercise of FCJ that might assist his or her unauthorized departure and establish other appropriate controls.

A10.7.1.6. Advise such personnel by written memorandum with written acknowledgment required, that an international hold has been instituted and that they are not to depart Denmark until such departure is authorized by the DCO.

A10.7.1.7. Notify the appropriate traffic management office (TMO) that such personnel must not be afforded Government transportation of any type from Denmark without the prior approval of the DCO, and to rescind any TMO actions that have been completed permitting such transportation.

A10.7.1.8. Not approve permanent change of station, temporary duty, pass, or leave of such personnel without the approval of the DCO.

A10.7.2. Legal Advisor will:

A10.7.2.1. Establish procedures to ensure that he or she is immediately notified by Danish police or judicial authorities of the arrest, detention, or apprehension of members of the U.S. forces or their dependents by Danish authorities.

A10.7.2.2. Immediately notify the DCO through USAFE/JAI; the appropriate CLA; the commander of the individual concerned; and the Senior Defense Official/Defense Attache (SDO/DATT) of the involvement of any members of the U.S. forces or their dependents in incidents resulting in arrest, detention, or apprehension by Danish authorities.

A10.7.2.3. Assist the DCO to carry out the duties described in paragraphs **2 and 3** of this instruction.

A10.7.2.4. Liaise with CLAs and with USAFE/JAI as appropriate to ensure appropriate handling of all FCJ matters in Denmark.

Attachment 11

FCJ PROCEDURES - FINLAND

A11.1. Purpose. Current as of May 2026. This instruction provides information and procedures regarding the operation of the FCJ program in Finland.

A11.2. Authority. These procedures are issued by the Commander, USAFE as the DCO for Finland.

A11.3. Applicability and Scope. This instruction applies to all U.S. forces, and their dependents as defined in **paragraph A11.4** of this attachment.

A11.4. Definitions.

A11.4.1. U.S. Forces. As defined in Article 2, paragraph 1 of the 2023 Agreement on Defense Cooperation between the Government of the United States of America and the Government of the Republic of Finland (DCA), the entity comprising the force and the civilian component, and all property, official U.S. information, equipment, and materiel (including vehicles, vessels, and aircraft operated by or for the United States) of the U.S. Armed Forces present in the territory of Finland.

A11.4.2. Force. As defined in Article 2, paragraph 2 of the DCA, has the meaning set forth in Article I, paragraph 1(a) of the NATO SOFA.

A11.4.3. Civilian Component. As defined in Article 2, paragraph 3 of the DCA, has the meaning set forth in Article I, paragraph 1(b) of the NATO SOFA, and also includes:

A11.4.3.1. employees of non-Finnish, non-commercial organizations who are nationals of the United States of America or ordinarily resident in the territory of the United States and who are not ordinarily resident in the territory of Finland, and who, solely for the purpose of contributing to the welfare, morale, or education of U.S. forces, are accompanying those forces in the territory of Finland; and,

A11.4.3.2. dependents employed by U.S. forces, including for the purposes of the military service activities contemplated in Articles 21 and 22 of this Agreement, and by the noncommercial organizations referred to in this paragraph.

A11.4.4. Dependent. As defined in Article 2, paragraph 6 of the DCA, has the meaning set forth in Article I, Paragraph 1(c), of the NATO SOFA, and also includes a family member of a member of the force or the civilian component who:

A11.4.4.1. is financially, legally, or for reasons of health dependent upon and supported by such a member;

A11.4.4.2. shares the quarters occupied by such a member; and,

A11.4.4.3. is present in the territory of Finland with the consent of the authorities of the force.

A11.4.5. Legal Advisor. Legal Advisor refers to the SJA, 426th Air Base Squadron (ABS/JA), Unit 6615, APO AE 09706; DSN: 314-224-0532; COMM: +47 5195 0532.

A11.5. Relevant International Agreements. The NATO Status of Forces Agreement (SOFA) and the DCA provide status protections for members of the force and the civilian component and

their dependents. In DCA Article 12, Finland waived its primary right to exercise criminal jurisdiction in concurrent jurisdiction cases. Finland may withdraw this waiver in specific cases of particular importance to Finland by providing a statement in writing to the competent U.S. forces authorities not later than thirty days after receipt of notification of the offense by the U.S. Forces authorities. Accordingly, members of the U.S. Forces and their dependents are not immune from Finnish criminal jurisdiction and may, in certain circumstances, become the subjects of criminal prosecution before Finnish courts.

A11.6. Guidance.

A11.6.1. IAW ECI 5802.01, Commander, USAFE, is the DCO for Finland. Commander, USAFE has not appointed a USCR. The Legal Advisor is the point of contact for all FCJ matters that occur in the territory of Finland.

A11.6.2. Contact with the local police or judicial authorities to obtain release from custody or waiver of jurisdiction by anyone other than the DCO or the Legal Advisor is prohibited. Commanders and CLAs are to communicate directly with the Legal Advisor about matters involving the exercise of criminal jurisdiction in Finland.

A11.7. Responsibilities.

A11.7.1. Commanders will:

A11.7.1.1. Establish procedures to ensure that members of the U.S. Forces are advised of their rights and obligations under the NATO SOFA, including respecting the laws of Finland, refraining from engaging in political activities in Finland, their amenability to the criminal jurisdiction of Finland, and their rights and duties relating to customs privileges in Finland. This advice will be given to personnel as soon as practical after their arrival in Finland. Commanders should contact the Legal Advisor for assistance with a briefing program that meets this requirement.

A11.7.1.2. Promptly inform the Legal Advisor of any act or omission by members of the U.S. Forces or their dependents that involves Finnish interest and that could result in any of the following:

A11.7.1.2.1. criminal proceedings by Finnish courts.

A11.7.1.2.2. claims against the U.S. Government.

A11.7.1.2.3. creating or arousing substantial public interest.

A11.7.1.2.4. adverse public relations that would be detrimental to the United States.

A11.7.1.3. Without prior approval of the DCO, not permit the transfer or reassignment of a member of the force or provide transportation at Government expense outside of Finland for members of the civilian component or dependents who have or may become subject to FCJ or who have been or may be designated as witnesses in the exercise of FCJ by Finland. Commanders will inform the DCO through the Legal Advisor when unusual circumstances or Service directives urgently require the individual’s transfer.

A11.7.1.4. Ensure that an international hold is placed on any member of the force who is who have or may become subject to FCJ or who have been or may be designated as witnesses in the exercise of FCJ by Finland. This is necessary to prevent personnel actions

that would authorize the departure of such persons from Finland without the prior approval of the DCO.

A11.7.1.5. Impound, where appropriate, all documents relating to an individual facing the exercise of FCJ that might assist his or her unauthorized departure and establish other appropriate controls.

A11.7.1.6. Advise such personnel, by written memorandum with written acknowledgment required, that an international hold has been instituted and that they are not to depart Finland until such departure is authorized by the DCO.

A11.7.1.7. Notify the appropriate traffic management office (TMO) that such personnel must not be afforded Government transportation of any type from Finland without the prior approval of the DCO, and to rescind any TMO actions that have been completed permitting such transportation.

A11.7.1.8. Not approve permanent change of station, temporary duty, pass, or leave of such personnel without the approval of the DCO.

A11.7.2. Legal Advisor will:

A11.7.2.1. Establish procedures to ensure that he or she is immediately notified by Finnish police or judicial authorities of the arrest, detention, or apprehension of members of the U.S. Forces or their dependents by Finnish authorities.

A11.7.2.2. Immediately notify the DCO through USAFE/JAI; the appropriate CLA; the commander of the individual concerned; and the Senior Defense Official/Defense Attache (SDO/DATT) of the involvement of any members of the U.S. Forces or their dependents in incidents resulting in arrest, detention, or apprehension by Finnish authorities.

A11.7.2.3. Assist the DCO to carry out the duties described in paragraphs **2 and 3** of this instruction.

A11.7.2.4. Liaise with CLAs and with USAFE/JAI as appropriate to ensure appropriate handling of all FCJ matters in Finland.

Attachment 12

FCJ PROCEDURES - FRANCE

A12.1. Purpose. Current as of May 2026. This attachment provides information and procedures regarding the operation of the FCJ program in France.

A12.2. Authority. These procedures are issued by the Commander, USAFE as the DCO for France.

A12.3. Applicability and Scope. This attachment applies to all members of the force, the civilian component, and their dependents located in the territory of France as defined in **paragraph A12.4** of this attachment.

A12.4. Definitions.

A12.4.1. Force. Has the meaning set forth in Article I, paragraph 1(a) of the NATO SOFA.

A12.4.2. Civilian Component. Has the meaning set forth in Article I, paragraph 1(b) of the NATO SOFA.

A12.4.3. Dependent. Has the meaning set forth in Article I, Paragraph 1(c), of the NATO SOFA.

A12.4.4. Legal Advisor. Refers to the SJA, 52d Fighter Wing, OPC 9, Box 28, APO, AE 09126; DSN: 314-452-6796; COMM: +49 -6565-61-6796; Email: **52fw.jaadm@us.af.mil**.

A12.5. Relevant International Agreements. The NATO Status of Forces Agreement (SOFA) provides status protections for members of the force, the civilian component, and their dependents located in the territory of France. IAW Article VII of the NATO SOFA, members of the force, the civilian component, and their dependents are not immune from French criminal jurisdiction and may, in certain circumstances, become the subjects of criminal prosecution before French courts. The NATO SOFA may not apply in French Overseas Territories, such as Reunion Island. For FCJ cases that arise in French Overseas Territories, refer to the relevant bilateral agreement and contact the Legal Advisor or USAFE/JAI for assistance.

A12.6. Guidance.

A12.6.1. IAW U.S. ECI 5802.01, Commander, USAFE, is the DCO for France. Commander, USAFE has appointed the Commander, 52d Fighter Wing, as the USCR for France. The Legal Advisor is the point of contact for all FCJ matters that occur in the territory of France.

A12.6.2. Contact with the local police or judicial authorities to obtain release from custody or waiver of jurisdiction by anyone other than the USCR or the Legal Advisor is prohibited. Commanders and CLAs are to communicate directly with the Legal Advisor about matters involving the exercise of criminal jurisdiction in France.

A12.7. Responsibilities.

A12.7.1. Commanders will:

A12.7.1.1. Establish procedures to ensure that members of the force and civilian component are advised of their rights and obligations under the NATO SOFA, including respecting the laws of France, refraining from engaging in political activities in France, their amenability to the criminal jurisdiction of France, and their rights and duties relating

to customs privileges in France. This advice will be given to personnel as soon as practical after their arrival in France. Commanders should contact the Legal Advisor for assistance with a briefing program that meets this requirement.

A12.7.1.2. Promptly inform the Legal Advisor of any act or omission by members of the force, the civilian component or their dependents that involves French interest and that could result in any of the following:

A12.7.1.2.1. criminal proceedings by French courts.

A12.7.1.2.2. claims against the U.S. Government.

A12.7.1.2.3. creating or arousing substantial public interest.

A12.7.1.2.4. adverse public relations that would be detrimental to the U.S.

A12.7.1.3. Without prior approval of the USCR, not permit the transfer or reassignment of a member of the force or provide transportation at Government expense outside of France for members of the civilian component or dependents who have or may become subject to FCJ or who have been or may be designated as witnesses in the exercise of FCJ by France. Commanders will inform the USCR through the Legal Advisor when unusual circumstances or Service directives urgently require the individual's transfer.

A12.7.1.4. Ensure that an international hold is placed on any member of the force who is who have or may become subject to FCJ or who have been or may be designated as witnesses in the exercise of FCJ by France. This is necessary to prevent personnel actions that would authorize the departure of such persons from France without the prior approval of the USCR.

A12.7.1.5. Impound, where appropriate, all documents relating to an individual facing the exercise of FCJ that might assist his or her unauthorized departure and establish other appropriate controls.

A12.7.1.6. Advise such personnel by written memorandum with written acknowledgment required, that an international hold has been instituted and that they are not to depart France until such departure is authorized by the USCR.

A12.7.1.7. Notify the appropriate traffic management office (TMO) that such personnel must not be afforded Government transportation of any type from France without the prior approval of the USCR, and to rescind any TMO actions that have been completed permitting such transportation.

A12.7.1.8. Not approve permanent change of station, temporary duty, pass, or leave of such personnel without the approval of the USCR.

A12.7.2. Legal Advisor will:

A12.7.2.1. Establish procedures to ensure that he or she is immediately notified by French police or judicial authorities of the arrest, detention, or apprehension of members of the force, the civilian component, or their dependents by French authorities.

A12.7.2.2. Immediately notify the USCR; the appropriate CLA; the commander of the individual concerned; and the Senior Defense Official/Defense Attache (SDO/DATT) of

the involvement of any members of the force, the civilian component, or their dependents in incidents resulting in arrest, detention, or apprehension by French authorities.

A12.7.2.3. Assist the USCR to carry out the duties described in paragraphs **2 and 3** of this instruction.

A12.7.2.4. Liaise with CLAs and with USAFE/JAI as appropriate to ensure appropriate handling of all FCJ matters in France.

Attachment 13

FCJ PROCEDURES - HUNGARY

A13.1. Purpose. Current as of May 2026. This instruction provides information and procedures regarding the operation of the FCJ program in Hungary.

A13.2. Authority. These procedures are issued by the Commander, USAFE as the DCO for Hungary.

A13.3. Applicability and Scope. This instruction applies to all U.S. forces, and their dependents as defined in **paragraph A13.4** of this attachment.

A13.4. Definitions.

A13.4.1. U.S. Forces. As defined in Article 2, paragraph 1., of the 2019 Agreement on Defense Cooperation between the Government of the United States of America and the Government of Hungary (DCA), the entity comprising the force and the civilian component, and all property, equipment, and materiel (including vehicles, vessels, and aircraft operated by or for the United States) of the U.S. Armed Forces present in the territory of Hungary.

A13.4.2. Force. As defined in Article 2, paragraph 2 of the DCA, has the meaning set forth in Article I, paragraph 1(a) of the NATO SOFA.

A13.4.3. Civilian Component. As defined in Article 2, paragraph 3 of the DCA, has the meaning set forth in Article I, paragraph 1(b) of the NATO SOFA, and also includes:

A13.4.3.1. employees of non-Hungarian, non-commercial organizations who are nationals of the United States of America or ordinarily resident in the territory of the United States and who are not ordinarily resident in the territory of Hungary, and who, solely for the purpose of contributing to the welfare, morale, or education of U.S. forces, are accompanying those forces in the territory of Hungary; and,

A13.4.3.2. dependents employed by U.S. forces, including for the purposes of the military service activities contemplated in Articles 21 and 22 of this Agreement, and by the noncommercial organizations referred to in this paragraph.

A13.4.4. Dependent. As defined in Article 2, paragraph 5 of the DCA, has the meaning set forth in Article I, Paragraph 1(c), of the NATO SOFA, and also includes a family member of a member of the force or the civilian component who:

A13.4.4.1. is financially, legally, or for reasons of health dependent upon and supported by such a member;

A13.4.4.2. shares the quarters occupied by such a member; and,

A13.4.4.3. is present in the territory of Hungary with the consent of the authorities of the force.

A13.4.5. Legal Advisor. Legal Advisor refers to the SJA, USAFE-AFAFRICA/JA, OPC 02 Box 79, APO AE 09094; DSN 314-480-6826, Comm: +49-6371-476826.

A13.5. Relevant International Agreements. The NATO Status of Forces Agreement (SOFA) and the DCA provide status protections for members of the force and the civilian component and their dependents. In DCA Article XII, Hungary waived its primary right to exercise criminal

jurisdiction in concurrent jurisdiction cases. Hungary may withdraw this waiver in specific cases of major offenses of particular importance to Hungary by providing a statement in writing to the competent U.S. forces authorities not later than thirty days after receipt of notification of the offense by the U.S. Forces authorities. Accordingly, members of the U.S. Forces and their dependents are not immune from Hungarian criminal jurisdiction and may, in certain circumstances, become the subjects of criminal prosecution before Hungarian courts.

A13.6. Guidance.

A13.6.1. IAW U.S. ECI 5802.01, Commander, USAFE, is the DCO for Hungary. Commander, USAFE has not appointed a USCR. The Legal Advisor is the point of contact for all FCJ matters that occur in the territory of Hungary.

A13.6.2. Contact with the local police or judicial authorities to obtain release from custody or waiver of jurisdiction by anyone other than the DCO or the Legal Advisor is prohibited. Commanders and CLAs are to communicate directly with the Legal Advisor about matters involving the exercise of criminal jurisdiction in Hungary.

A13.7. Responsibilities.

A13.7.1. Commanders will:

A13.7.1.1. Establish procedures to ensure that members of the U.S. Forces are advised of their rights and obligations under the NATO SOFA, including respecting the laws of Hungary, refraining from engaging in political activities in Hungary, their amenability to the criminal jurisdiction of Hungary, and their rights and duties relating to customs privileges in Hungary. This advice will be given to personnel as soon as practical after their arrival in Hungary. Commanders should contact the Legal Advisor for assistance with a briefing program that meets this requirement.

A13.7.1.2. Promptly inform the Legal Advisor of any act or omission by members of the U.S. Forces or their dependents that involves Hungarian interest and that could result in any of the following:

A13.7.1.2.1. criminal proceedings by Hungarian courts.

A13.7.1.2.2. claims against the U.S. Government.

A13.7.1.2.3. creating or arousing substantial public interest.

A13.7.1.2.4. adverse public relations that would be detrimental to the U.S.

A13.7.1.3. Without prior approval of the DCO, not permit the transfer or reassignment of a member of the force or provide transportation at Government expense outside of Hungary for members of the civilian component or dependents who have or may become subject to FCJ or who have been or may be designated as witnesses in the exercise of FCJ by Hungary. Commanders will inform the DCO through the Legal Advisor when unusual circumstances or Service directives urgently require the individual's transfer.

A13.7.1.4. Ensure that an international hold is placed on any member of the force who is who have or may become subject to FCJ or who have been or may be designated as witnesses in the exercise of FCJ by Hungary. This is necessary to prevent personnel actions that would authorize the departure of such persons from Hungary without the prior approval of the DCO.

A13.7.1.5. Impound, where appropriate, all documents relating to an individual facing the exercise of FCJ that might assist his or her unauthorized departure and establish other appropriate controls.

A13.7.1.6. Advise such personnel by written memorandum with written acknowledgment required, that an international hold has been instituted and that they are not to depart Hungary until such departure is authorized by the DCO.

A13.7.1.7. Notify the appropriate traffic management office (TMO) that such personnel must not be afforded Government transportation of any type from Hungary without the prior approval of the DCO, and to rescind any TMO actions that have been completed permitting such transportation.

A13.7.1.8. Not approve permanent change of station, temporary duty, pass, or leave of such personnel without the approval of the DCO.

A13.7.2. Legal Advisor will:

A13.7.2.1. Establish procedures to ensure that he or she is immediately notified by Hungarian police or judicial authorities of the arrest, detention, or apprehension of members of the U.S. Forces or their dependents by Hungarian authorities.

A13.7.2.2. Immediately notify the DCO; the appropriate CLA; the commander of the individual concerned; and the Senior Defense Official/Defense Attache (SDO/DATT) of the involvement of any members of the U.S. Forces or their dependents in incidents resulting in arrest, detention, or apprehension by Hungarian authorities.

A13.7.2.3. Assist the DCO to carry out the duties described in paragraphs **2 and 3** of this instruction.

A13.7.2.4. Liaise with CLAs as appropriate to ensure appropriate handling of all FCJ matters in Hungary.

Attachment 14

FCJ PROCEDURES - LUXEMBOURG

A14.1. Purpose. Current as of May 2026. This attachment provides information and procedures regarding the operation of the FCJ program in Luxembourg.

A14.2. Authority. These procedures are issued by the Commander, USAFE as the DCO for Luxembourg.

A14.3. Applicability and Scope. This attachment applies to all members of the force, the civilian component, and their dependents located in the territory of Luxembourg as defined in **paragraph A14.4** of this attachment.

A14.4. Definitions.

A14.4.1. Force. Has the meaning set forth in Article I, paragraph 1(a) of the NATO SOFA.

A14.4.2. Civilian Component. Has the meaning set forth in Article I, paragraph 1(b) of the NATO SOFA.

A14.4.3. Dependent. Has the meaning set forth in Article I, Paragraph 1(c), of the NATO SOFA.

A14.4.4. Legal Advisor. Refers to the SJA, 52d Fighter Wing, OPC 9, Box 28, APO, AE 09126; DSN: 314-452-6796; COMM: +49 -6565-61-6796; Email: **52fw.jaadm@us.af.mil**.

A14.5. Relevant International Agreements. The NATO Status of Forces Agreement (SOFA) provides status protections for members of the force, the civilian component, and their dependents located in the territory of Luxembourg. IAW Article VII of the NATO SOFA, members of the force, the civilian component, and their dependents are not immune from Luxembourgian criminal jurisdiction and may, in certain circumstances, become the subjects of criminal prosecution before Luxembourgian courts.

A14.6. Guidance.

A14.6.1. IAW U.S. ECI 5802.01, Commander, USAFE, is the DCO for Luxembourg. Commander, USAFE has appointed the Commander, 52d Fighter Wing, as the USCR for Luxembourg. The Legal Advisor is the point of contact for all FCJ matters that occur in the territory of Luxembourg.

A14.6.2. Contact with the local police or judicial authorities to obtain release from custody or waiver of jurisdiction by anyone other than the USCR or the Legal Advisor is prohibited. Commanders and CLAs are to communicate directly with the Legal Advisor about matters involving the exercise of criminal jurisdiction in Luxembourg.

A14.7. Responsibilities.

A14.7.1. Commanders will:

A14.7.1.1. Establish procedures to ensure that members of the force and civilian component are advised of their rights and obligations under the NATO SOFA, including respecting the laws of Luxembourg, refraining from engaging in political activities in Luxembourg, their amenability to the criminal jurisdiction of Luxembourg, and their rights and duties relating to customs privileges in Luxembourg. This advice will be given to

personnel as soon as practical after their arrival in Luxembourg. Commanders should contact the Legal Advisor for assistance with a briefing program that meets this requirement.

A14.7.1.2. Promptly inform the Legal Advisor of any act or omission by members of the force, the civilian component or their dependents that involves Luxembourgian interest and that could result in any of the following:

A14.7.1.2.1. criminal proceedings by Luxembourgian courts.

A14.7.1.2.2. claims against the U.S. Government.

A14.7.1.2.3. creating or arousing substantial public interest.

A14.7.1.2.4. adverse public relations that would be detrimental to the U.S.

A14.7.1.3. Without prior approval of the USCR, not permit the transfer or reassignment of a member of the force or provide transportation at Government expense outside of Luxembourg for members of the civilian component or dependents who have or may become subject to FCJ or who have been or may be designated as witnesses in the exercise of FCJ by Luxembourg. Commanders will inform the USCR through the Legal Advisor when unusual circumstances or Service directives urgently require the individual's transfer.

A14.7.1.4. Ensure that an international hold is placed on any member of the force who is who have or may become subject to FCJ or who have been or may be designated as witnesses in the exercise of FCJ by Luxembourg. This is necessary to prevent personnel actions that would authorize the departure of such persons from Luxembourg without the prior approval of the USCR.

A14.7.1.5. Impound, where appropriate, all documents relating to an individual facing the exercise of FCJ that might assist his or her unauthorized departure and establish other appropriate controls.

A14.7.1.6. Advise such personnel, by written memorandum with written acknowledgment required, that an international hold has been instituted and that they are not to depart Luxembourg until such departure is authorized by the USCR.

A14.7.1.7. Notify the appropriate traffic management office (TMO) that such personnel must not be afforded Government transportation of any type from Luxembourg without the prior approval of the USCR, and to rescind any TMO actions that have been completed permitting such transportation.

A14.7.1.8. Not approve permanent change of station, temporary duty, pass, or leave of such personnel without the approval of the USCR.

A14.7.2. Legal Advisor will:

A14.7.2.1. Establish procedures to ensure that he or she is immediately notified by Luxembourgian police or judicial authorities of the arrest, detention, or apprehension of members of the U.S. Forces or their dependents by Luxembourgian authorities.

A14.7.2.2. Immediately notify the USCR; the appropriate CLA; the commander of the individual concerned; and the Senior Defense Official/Defense Attache (SDO/DATT) of

the involvement of any members of the force, the civilian component, or their dependents in incidents resulting in arrest, detention, or apprehension by Luxembourgian authorities.

A14.7.2.3. Assist the USCR to carry out the duties described in paragraphs **2 and 3** of this instruction.

A14.7.2.4. Liaise with CLAs and with USAFE/JAI as appropriate to ensure appropriate handling of all FCJ matters in Luxembourg.

Attachment 15

FCJ PROCEDURES – NORWAY

A15.1. Purpose. Current as of May 2026. This instruction provides information and procedures regarding the operation of the FCJ program in Norway.

A15.2. Authority. These procedures are issued by the Commander, USAFE as the DCO for Norway.

A15.3. Applicability and Scope. This instruction applies to all U.S. forces, and their dependents as defined in **paragraph A15.4** of this attachment.

A15.4. Definitions.

A15.4.1. U.S. Forces. As defined in Article II, paragraph 1 of the 2021 Supplementary Defense Cooperation Agreement between the Government of the United States of America and the Government of the Government of the Kingdom Norway (SDCA), the entity comprising the force and the civilian component, and all property, official U.S. information, equipment, and materiel (including vehicles, vessels, and aircraft operated by or for the United States) of the U.S. Armed Forces present in the territory of Norway.

A15.4.2. Force. As defined in Article II, paragraph 2 of the SDCA, has the meaning set forth in Article I, paragraph 1(a) of the NATO SOFA.

A15.4.3. Civilian Component. As defined in Article II, paragraph 3 of the SDCA, has the meaning set forth in Article I, paragraph 1(b) of the NATO SOFA, and also includes:

A15.4.3.1. employees of non-Norwegian, non-commercial organizations who are nationals of the United States of America or ordinarily resident in the territory of the United States and who are not ordinarily resident in the territory of Norway, and who, solely for the purpose of contributing to the welfare, morale, or education of U.S. forces, are accompanying those forces in the territory of Norway; and,

A15.4.3.2. dependents employed by U.S. forces, including for the purposes of the military service activities contemplated in Articles XXI and XXII of this Agreement, and by the noncommercial organizations referred to in this paragraph.

A15.4.4. Dependent. As defined in Article II, paragraph 6 of the SDCA, has the meaning set forth in Article I, Paragraph 1(c), of the NATO SOFA, and also includes a family member of a member of the force or the civilian component who:

A15.4.4.1. is financially, legally, or for reasons of health dependent upon and supported by such a member;

A15.4.4.2. shares the quarters occupied by such a member; and,

A15.4.4.3. is present in the territory of Norway with the consent of the authorities of the U.S. forces authorities.

A15.4.5. Legal Advisor. Legal Advisor refers to the SJA, 426th Air Base Squadron (ABS/JA), Unit 6615, APO AE 09706; DSN: 314-224-0532; COMM: +47 5195 0532.

A15.5. Relevant International Agreements. The NATO Status of Forces Agreement (SOFA) and the SDCA provide status protections for members of the force and the civilian component and

their dependents. Criminal jurisdiction procedures under the SDCA are reflected in an implementing arrangement. In SDCA Article XII, Norway waived its primary right to exercise criminal jurisdiction in concurrent jurisdiction cases. Norway may withdraw this waiver in specific cases that Norwegian authorities determine involve special circumstances by providing a statement in writing to the competent U.S. forces authorities not later than thirty days after receipt of notification of the offense by the U.S. Forces authorities. Accordingly, members of the U.S. Forces and their dependents are not immune from Norwegian criminal jurisdiction and may, in certain circumstances, become the subjects of criminal prosecution before Norwegian courts.

A15.6. Guidance.

A15.6.1. IAW ECI 5802.01, Commander, USAFE, is the DCO for Norway. Commander, USAFE has appointed the Senior U.S. Military Officer, NATO Joint Warfare Center, Stavanger, Norway as the USCR for Norway. The Legal Advisor is the point of contact for all FCJ matters that occur in the territory of Norway.

A15.6.2. Contact with the local police or judicial authorities to obtain release from custody or waiver of jurisdiction by anyone other than the USCR or the Legal Advisor is prohibited. Commanders and CLAs are to communicate directly with the Legal Advisor about matters involving the exercise of criminal jurisdiction in Norway.

A15.7. Responsibilities.

A15.7.1. Commanders will:

A15.7.1.1. Establish procedures to ensure that members of the U.S. Forces are advised of their rights and obligations under the NATO SOFA, including respecting the laws of Norway, refraining from engaging in political activities in Norway, their amenability to the criminal jurisdiction of Norway, and their rights and duties relating to customs privileges in Norway. This advice will be given to personnel as soon as practical after their arrival in Norway. Commanders should contact the Legal Advisor for assistance with a briefing program that meets this requirement.

A15.7.1.2. Promptly inform the Legal Advisor of any act or omission by members of the U.S. Forces or their dependents that involves Norwegian interest and that could result in any of the following:

A15.7.1.2.1. criminal proceedings by Norwegian courts.

A15.7.1.2.2. claims against the U.S. Government.

A15.7.1.2.3. creating or arousing substantial public interest.

A15.7.1.2.4. adverse public relations that would be detrimental to the United States.

A15.7.1.3. Without prior approval of the USCR, not permit the transfer or reassignment of a member of the force or provide transportation at Government expense outside of Norway for members of the civilian component or dependents who have or may become subject to FCJ or who have been or may be designated as witnesses in the exercise of FCJ by Norway. Commanders will inform the USCR through the Legal Advisor when unusual circumstances or Service directives urgently require the individual's transfer.

A15.7.1.4. Ensure that an international hold is placed on any member of the force who is who have or may become subject to FCJ or who have been or may be designated as

witnesses in the exercise of FCJ by Norway. This is necessary to prevent personnel actions that would authorize the departure of such persons from Norway without the prior approval of the USCR.

A15.7.1.5. Impound, where appropriate, all documents relating to an individual facing the exercise of FCJ that might assist his or her unauthorized departure and establish other appropriate controls.

A15.7.1.6. Advise such personnel, by written memorandum with written acknowledgment required, that an international hold has been instituted and that they are not to depart Norway until such departure is authorized by the USCR.

A15.7.1.7. Notify the appropriate traffic management office (TMO) that such personnel must not be afforded Government transportation of any type from Norway without the prior approval of the USCR, and to rescind any TMO actions that have been completed permitting such transportation.

A15.7.1.8. Not approve permanent change of station, temporary duty, pass, or leave of such personnel without the approval of the USCR.

A15.7.2. Legal Advisor will:

A15.7.2.1. Establish procedures to ensure that he or she is immediately notified by Norwegian police or judicial authorities of the arrest, detention, or apprehension of members of the U.S. Forces or their dependents by Norwegian authorities.

A15.7.2.2. Immediately notify the USCR; the appropriate CLA; the commander of the individual concerned; and the Senior Defense Official/Defense Attache (SDO/DATT) of the involvement of any members of the U.S. Forces or their dependents in incidents resulting in arrest, detention, or apprehension by Norwegian authorities.

A15.7.2.3. Assist the USCR to carry out the duties described in paragraphs **2 and 3** of this instruction.

A15.7.2.4. Liaise with CLAs and with USAFE/JAI as appropriate to ensure appropriate handling of all FCJ matters in Norway.

Attachment 16

FCJ PROCEDURES – SWEDEN

A16.1. Purpose. Current as of May 2026. This instruction provides information and procedures regarding the operation of the FCJ program in Sweden.

A16.2. Authority. These procedures are issued by the Commander, USAFE as the DCO for Sweden.

A16.3. Applicability and Scope. This instruction applies to all U.S. forces, and their dependents as defined in **paragraph A16.4** of this attachment.

A16.4. Definitions.

A16.4.1. U.S. Forces. As defined in Article 2, paragraph 1 of the 2023 Agreement on Defense Cooperation between the Government of the United States of America and the Government of Sweden (DCA), the entity comprising the force and the civilian component, and all property, official U.S. information, equipment, and materiel (including vehicles, vessels, and aircraft operated by or for the United States) of the U.S. Armed Forces present in the territory of Sweden.

A16.4.2. Force. As defined in Article 2, paragraph 2 of the DCA, has the meaning set forth in Article I, paragraph 1(a) of the NATO SOFA.

A16.4.3. Civilian Component. As defined in Article 2, paragraph 3 of the DCA, has the meaning set forth in Article I, paragraph 1(b) of the NATO SOFA, and also includes:

A16.4.3.1. employees of non-Swedish, non-commercial organizations who are nationals of the United States of America or ordinarily resident in the territory of the United States and who are not ordinarily resident in the territory of Sweden, and who, solely for the purpose of contributing to the welfare, morale, or education of U.S. forces, are accompanying those forces in the territory of Sweden; and,

A16.4.3.2. dependents employed by U.S. forces, including for the purposes of the military service activities contemplated in Articles 21 and 22 of this Agreement, and by the noncommercial organizations referred to in this paragraph.

A16.4.4. Dependent. As defined in Article 2, paragraph 6 of the DCA, has the meaning set forth in Article I, Paragraph 1(c), of the NATO SOFA, and also includes a family member of a member of the force or the civilian component who:

A16.4.4.1. is financially, legally, or for reasons of health dependent upon and supported by such a member;

A16.4.4.2. shares the quarters occupied by such a member; and,

A16.4.4.3. is present in the territory of Sweden with the consent of the authorities of the force.

A16.4.5. Legal Advisor. Legal Advisor refers to the SJA, 426th Air Base Squadron (ABS/JA), Unit 6615, APO AE 09706; DSN: 314-224-0532; COMM: +47 5195 0532.

A16.5. Relevant International Agreements. The NATO Status of Forces Agreement (SOFA) and the DCA provide status protections for members of the force and the civilian component and

their dependents. Criminal jurisdiction procedures under the DCA are reflected in an implementing arrangement. In DCA Article 12, Sweden waived its primary right to exercise criminal jurisdiction in concurrent jurisdiction cases. Sweden may withdraw this waiver in specific cases of particular importance to Sweden by providing a statement in writing to the competent U.S. forces authorities not later than thirty days after receipt of notification of the offense by the US. Forces authorities. Accordingly, members of the U.S. Forces and their dependents are not immune from Swedish criminal jurisdiction and may, in certain circumstances, become the subjects of criminal prosecution before Swedish courts.

A16.6. Guidance.

A16.6.1. IAW ECI 5802.01, Commander, USAFE, is the DCO for Sweden. Commander, USAFE has not appointed a USCR. The Legal Advisor is the point of contact for all FCJ matters that occur in the territory of Sweden.

A16.6.2. Contact with the local police or judicial authorities to obtain release from custody or waiver of jurisdiction by anyone other than the DCO or the Legal Advisor is prohibited. Commanders and CLAs are to communicate directly with the Legal Advisor about matters involving the exercise of criminal jurisdiction in Sweden.

A16.7. Responsibilities.

A16.7.1. Commanders will:

A16.7.1.1. Establish procedures to ensure that members of the U.S. Forces are advised of their rights and obligations under the NATO SOFA, including respecting the laws of Sweden, refraining from engaging in political activities in Sweden, their amenability to the criminal jurisdiction of Sweden, and their rights and duties relating to customs privileges in Sweden. This advice will be given to personnel as soon as practical after their arrival in Sweden. Commanders should contact the Legal Advisor for assistance with a briefing program that meets this requirement.

A16.7.1.2. Promptly inform the Legal Advisor of any act or omission by members of the U.S. Forces or their dependents that involves Swedish interest and that could result in any of the following:

A16.7.1.2.1. criminal proceedings by Swedish courts.

A16.7.1.2.2. claims against the U.S. Government.

A16.7.1.2.3. creating or arousing substantial public interest.

A16.7.1.2.4. adverse public relations that would be detrimental to the U.S.

A16.7.1.3. Without prior approval of the DCO, not permit the transfer or reassignment of a member of the force or provide transportation at Government expense outside of Sweden for members of the civilian component or dependents who have or may become subject to FCJ or who have been or may be designated as witnesses in the exercise of FCJ by Sweden. Commanders will inform the DCO through the Legal Advisor when unusual circumstances or Service directives urgently require the individual’s transfer.

A16.7.1.4. Ensure that an international hold is placed on any member of the force who is who have or may become subject to FCJ or who have been or may be designated as witnesses in the exercise of FCJ by Sweden. This is necessary to prevent personnel actions

that would authorize the departure of such persons from Sweden without the prior approval of the DCO.

A16.7.1.5. Impound, where appropriate, all documents relating to an individual facing the exercise of FCJ that might assist his or her unauthorized departure and establish other appropriate controls.

A16.7.1.6. Advise such personnel, by written memorandum with written acknowledgment required, that an international hold has been instituted and that they are not to depart Sweden until such departure is authorized by the DCO.

A16.7.1.7. Notify the appropriate traffic management office (TMO) that such personnel must not be afforded Government transportation of any type from Sweden without the prior approval of the DCO, and to rescind any TMO actions that have been completed permitting such transportation.

A16.7.1.8. Not approve permanent change of station, temporary duty, pass, or leave of such personnel without the approval of the DCO.

A16.7.2. Legal Advisor will:

A16.7.2.1. Establish procedures to ensure that he or she is immediately notified by Swedish police or judicial authorities of the arrest, detention, or apprehension of members of the U.S. Forces or their dependents by Swedish authorities.

A16.7.2.2. Immediately notify the DCO through USAFE/JAI; the appropriate CLA; the commander of the individual concerned; and the Senior Defense Official/Defense Attache (SDO/DATT) of the involvement of any members of the U.S. Forces or their dependents in incidents resulting in arrest, detention, or apprehension by Swedish authorities.

A16.7.2.3. Assist the DCO to carry out the duties described in paragraphs **2 and 3** of this instruction.

A16.7.2.4. Liaise with CLAs and with USAFE/JAI as appropriate to ensure appropriate handling of all FCJ matters in Sweden.

Attachment 17

FCJ PROCEDURES – TÜRKIYE

A17.1. Purpose. Current as of May 2026. This instruction provides information and procedures regarding the operation of the FCJ program in Türkiye.

A17.2. Authority. These procedures are issued by the Commander, USAFE as the DCO for Türkiye.

A17.3. Applicability and Scope. This instruction applies to all U.S. forces, and their dependents as defined in **paragraph A17.4** of this attachment.

A17.4. Definitions.

A17.4.1. Force. Has the meaning set forth in Article I, paragraph 1(a) of the NATO SOFA.

A17.4.2. Civilian Component. IAW Article I, paragraph 1, of the NATO SOFA IA, has the meaning set forth in Article I, paragraph 1(b) of the NATO SOFA and includes employees of U.S. military organizations, employees of U.S. government departments, Post Exchanges, and recreational organizations for military personnel, Red Cross and United Service Organization personnel, and technical representatives of contractors with the U.S. forces assigned to U.S. military organizations in Türkiye.

A17.4.3. Dependent. IAW Article 1, paragraph 1 of the NATO SOFA IA, has the meaning set forth in Article I, Paragraph 1(c), of the NATO SOFA and includes all persons who are relatives of, and in accordance with U.S. laws or regulations, depending for support upon and actually residing with any member of a U.S. force or the civilian component, except those who are not U.S. citizens.

A17.4.4. Legal Advisor. Legal Advisor refers to the SJA, 39th Air Base Wing, Incirlik Air Base, Türkiye, Unit 7123, APO AE 09824-7123, DSN: 314-676-6800, COMM: 0090-322-316-68

A17.5. Relevant International Agreements. The NATO SOFA and the NATO SOFA IA provide status protections for members of the force and the civilian component and their dependents, but members of the force, the civilian component and their dependents are not immune from criminal jurisdiction and may, in certain circumstances, become the subjects of criminal prosecution before Turkish courts.

A17.6. Guidance.

A17.6.1. IAW ECI 5802.01, Commander, USAFE, is the DCO for Türkiye. Commander, USAFE has appointed the Commander, 39th Air Base Wing as USCR. The Legal Advisor is the point of contact for all FCJ matters that occur in the territory of Türkiye.

A17.6.2. Contact with the local police or judicial authorities to obtain release from custody or waiver of jurisdiction by anyone other than the USCR or the Legal Advisor is prohibited. The Legal Advisor may designate installation and subordinate command SJAs to contact local police or judicial authorities where appropriate to obtain release from custody and to request waivers of Türkiye's primary right to exercise jurisdiction. If custody release or waiver is not granted by the local authorities, installation and subordinate command SJAs will contact the Legal Advisor for a determination on further processing.

A17.6.3. Official duty cases will be referred to the Legal Advisor for issuance of official duty certificates.

A17.6.4. Unless otherwise advised by the Legal Advisor, commanders and CLAs are to communicate directly with the Legal Advisor about matters involving the exercise of criminal jurisdiction in Türkiye.

A17.7. Responsibilities.

A17.7.1. Commanders will:

A17.7.1.1. Establish procedures to ensure that members of the force and the civilian component are advised of their rights and obligations under the NATO SOFA and relevant bilateral agreements, including respecting the laws of Türkiye, refraining from engaging in political activities in Türkiye, their amenability to the criminal jurisdiction of Türkiye, and their rights and duties relating to customs privileges in Türkiye. This advice will be given to personnel as soon as practical after their arrival in Türkiye. Commanders should contact their servicing legal office or Legal Advisor for assistance with a briefing program that meets this requirement.

A17.7.1.2. Promptly inform the Legal Advisor, through their servicing legal office, of any act or omission by members of the force, the civilian component, or their dependents that involves Turkish interest and that could result in any of the following:

A17.7.1.2.1. criminal proceedings by Turkish courts.

A17.7.1.2.2. claims against the U.S. Government.

A17.7.1.2.3. creating or arousing substantial public interest.

A17.7.1.2.4. adverse public relations that would be detrimental to the U.S.

A17.7.1.3. Without prior approval of the USCR, not permit the transfer or reassignment of a member of the force or provide transportation at Government expense outside of Türkiye for members of the civilian component or dependents who have or may become subject to FCJ or who have been or may be designated as witnesses in the exercise of FCJ by Türkiye. Commanders will inform the USCR through the Legal Advisor when unusual circumstances or service directives urgently require the individual's transfer.

A17.7.1.4. Ensure that an international hold is placed on any member of the force who is accused of or suspected of being involved in incidents likely to result in the exercise of FCJ by Türkiye. This is necessary to prevent personnel actions that would authorize the departure of such persons from Türkiye without the prior approval of the USCR.

A17.7.1.5. Impound, where appropriate, all documents relating to an individual facing the exercise of FCJ that might assist his or her unauthorized departure and establish other appropriate controls.

A17.7.1.6. Advise such personnel by written memorandum with written acknowledgment required, that an international hold has been instituted and that they are not to depart Türkiye until such departure is authorized by the USCR.

A17.7.1.7. Notify the appropriate traffic management office (TMO) that such personnel must not be afforded Government transportation of any type from Türkiye without the prior

approval of the USCR, and to rescind any TMO actions that have been completed permitting such transportation.

A17.7.1.8. Not approve permanent change of station, temporary duty, pass, or leave of such personnel without the approval of the USCR.

A17.7.2. Legal Advisor will:

A17.7.2.1. Establish procedures to ensure that he or she is immediately notified of the arrest, detention, or apprehension of members of the force, the civilian component or their dependents by Turkish authorities.

A17.7.2.2. Immediately notify the USCR; the appropriate CLA; the commander of the individual concerned; and the Senior Defense Official/Defense Attache (SDO/DATT) of the involvement of any members of the force, the civilian component or their dependents in incidents resulting in arrest, detention, or apprehension by Turkish authorities.

A17.7.2.3. Assist the USCR to carry out the duties described in paragraphs **2 and 3** of this instruction.

A17.7.2.4. Liaise with installation and subordinate command SJAs, CLAs and with USAFE/JAI as appropriate to ensure appropriate handling of all FCJ matters in Türkiye.

Attachment 18

FCJ PROCEDURES – UNITED KINGDOM, SOVEREIGN BASE AREAS, AND ASCENSION ISLAND

A18.1. Purpose. Current as of May 2026. This attachment provides information and procedures regarding the operation of the FCJ program in the United Kingdom, the Sovereign Base Areas (SBA) in Cyprus, and Ascension Island.

A18.2. Authority. These procedures are issued by the Commander, USAFE as the DCO for the United Kingdom, the SBA and Ascension Island.

A18.3. Applicability and Scope. This attachment applies to all DoW personnel as defined in **paragraph A18.4** of this attachment.

A18.4. Definitions.

A18.4.1. Force. Has the meaning set forth in Article I, paragraph 1(a) of the NATO SOFA.

A18.4.2. Civilian Component. Has the meaning set forth in Article I, paragraph 1(b) of the NATO SOFA.

A18.4.3. Dependent. Has the meaning set forth in Article I, Paragraph 1(c), of the NATO SOFA.

A18.4.4. DoW Personnel. For the purposes of this attachment, means U.S. servicemembers, civilian employees of the DoW or the military departments, and their dependents present in the territory of a foreign country for official purposes.

A18.4.5. Legal Advisor. Refers to the Director of Legal Services, USAFE-UK/JA, Office of the USCR, RAF Mildenhall, Comm (UK): 44-(0)1638-543278, DSN 314-238-3278

A18.5. Relevant International Agreements.

A18.5.1. United Kingdom: The NATO SOFA provides status protections for members of the force, the civilian component, and their dependents located in the territory of the United Kingdom where the NATO SOFA applies. IAW Article VII of the NATO SOFA, members of the force, the civilian component, and their dependents are not immune from U.K. criminal jurisdiction and may, in certain circumstances, become the subjects of criminal prosecution before U.K. courts.

A18.5.2. SBA: The SBA of Akrotiri and Dhekelia is a British Overseas Territory that consists of two separate areas on the island of Cyprus. Although it is sovereign U.K. territory, the SBA is not covered under the NATO SOFA, and there is no bilateral status agreement between the U.S. and the U.K. that defines privileges and immunities for members of the force, the civilian component or their dependents on the SBA. Accordingly, without the specific agreement of the U.K. authorities, U.S. personnel on the SBA are not immune from U.K. criminal jurisdiction and may become subjects of criminal prosecution before U.K. courts.

A18.5.3. Ascension Island: Ascension Island is governed as part of the British Overseas Territory of Saint Helena, Ascension, and Tristan da Cunha. Ascension Island is not covered by the NATO SOFA. Article V of the 1956 Bahamas Long Range Proving Ground: Establishment of Additional Sites in Ascension Island, as amended, provides certain status

protections to DoW personnel, but they are not immune from the jurisdiction of Ascension Island authorities and may become subjects of criminal prosecution before local courts.

A18.6. Guidance.

A18.6.1. IAW ECI 5802.01, Commander, USAFE, is the DCO for the U.K., the SBA, and Ascension Island. Commander, USAFE has appointed the Commander, 48th Fighter Wing, as the USCR for the U.K., the SBA, and Ascension Island. The Legal Advisor is the point of contact for all FCJ matters that occur in the territory of the U.K., the SBA, and Ascension Island.

A18.6.2. Contact with the local police or judicial authorities to obtain release from custody or waiver of jurisdiction by anyone other than the USCR or the Legal Advisor is prohibited. The Legal Advisor may designate installation SJAs to contact local police or judicial authorities where appropriate. All requests for waiver of a foreign government's primary right to exercise jurisdiction will be referred to the Legal Advisor.

A18.6.3. Unless advised otherwise by the Legal Advisor, CLAs are to communicate directly with the Legal Advisor about matters involving the exercise of criminal jurisdiction in the U.K., the SBA, and Ascension Island.

A18.7. Responsibilities.

A18.7.1. Commanders will:

A18.7.1.1. Establish procedures to ensure that DoW personnel are advised of their rights and obligations under relevant agreements as noted above. This advice will be given to personnel as soon as practical after their arrival in the applicable foreign country. Commanders should contact the Legal Advisor for assistance with a briefing program that meets this requirement.

A18.7.1.2. Promptly inform the Legal Advisor of any act or omission by DoW personnel that involves foreign country interests and that could result in any of the following:

A18.7.1.2.1. criminal proceedings by local courts.

A18.7.1.2.2. claims against the U.S. Government.

A18.7.1.2.3. creating or arousing substantial public interest.

A18.7.1.2.4. adverse public relations that would be detrimental to the U.S.

A18.7.1.3. Without prior approval of the USCR, not permit the transfer or reassignment of U.S. servicemembers or provide transportation at Government expense outside of the applicable foreign country for other DoW personnel who have or may become subject to foreign incidents likely to result in the exercise of FCJ by the applicable foreign country. Commanders will inform the USCR through the Legal Advisor when unusual circumstances or Service directives urgently require the individual's transfer.

A18.7.1.4. Ensure that an international hold is placed on any U.S. servicemember who have or may become subject to FCJ or who have been or may be designated as witnesses in the exercise of FCJ by an applicable foreign country. This is necessary to prevent personnel actions that would authorize the departure of such personnel from the territory of a foreign country without the prior approval of the USCR.

A18.7.1.5. Impound, where appropriate, all documents relating to an individual facing the exercise of FCJ that might assist his or her unauthorized departure and establish other appropriate controls.

A18.7.1.6. Advise personnel facing the exercise of FCJ, by written memorandum with written acknowledgment required, that an international hold has been instituted and that they are not to depart the applicable foreign country until such departure is approved by the USCR.

A18.7.1.7. Notify the appropriate traffic management office (TMO) that such personnel must not be afforded Government transportation of any type from the applicable foreign country without the prior approval of the USCR, and to rescind any TMO actions that have been completed permitting such transportation.

A18.7.1.8. Not approve permanent change of station, temporary duty, pass, or leave of such personnel without the approval of the USCR.

A18.7.2. Legal Advisor will:

A18.7.2.1. Establish procedures to ensure that he or she is immediately notified of the arrest, detention, or apprehension of DoW personnel by local authorities.

A18.7.2.2. Immediately notify the USCR, the appropriate installation or subordinate command SJA, the appropriate CLA; the commander of the individual concerned, and the Senior Defense Official/Defense Attache (SDO/DATT) of the involvement of any DoW personnel in incidents resulting in arrest, detention, or apprehension by local authorities.

A18.7.2.3. Assist the USCR to carry out the duties described in paragraphs **2 and 3** of this instruction.

A18.7.2.4. Liaise with installation and subordinate command SJAs, CLAs, and with USAFE/JAI as appropriate to ensure appropriate handling of all FCJ matters in the U.K., the SBA, and Ascension Island.